

UCI Anti-Doping Regulations

UCI
TESTING AND INVESTIGATIONS
REGULATIONS

(“UCI TIR”)

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PART ONE: INTRODUCTION, SCOPE, UCI ANTI-DOPING RULES AND REGULATIONS PROVISIONS AND DEFINITIONS

1.0 Introduction and Scope

The *UCI Testing* and Investigations Regulations (**UCI TIR**) implement the provisions in the *WADA International Standard for Testing* and Investigations and supplement the *UCI Anti-Doping Rules (UCI ADR)*.

The first purpose of the *UCI Testing* and Investigations Regulations is to plan for intelligent and effective *Testing*, both *In-Competition* and *Out-of-Competition*, and to maintain the integrity, identity and security of the *Samples* collected from the point the *Rider* is notified of his/her selection for *Testing*, to the point the *Samples* are delivered to the Laboratory for analysis. To that end, the *UCI Testing* and Investigations Regulations (including its Annexes) establishes mandatory standards for Test distribution planning (including collection and use of *Rider* whereabouts information), notification of *Riders*, preparing for and conducting *Sample* collection, security/post-Test administration of *Samples* and documentation, and transport of *Samples* to Laboratories for analysis.

The second purpose of the *UCI Testing* and Investigations Regulations is to establish mandatory standards for the efficient and effective gathering, assessment, and use of anti-doping intelligence and for the efficient and effective conduct of investigations into possible anti-doping rule violations.

The *UCI Testing* and Investigations Regulations is supported by *Technical Documents*, produced by *WADA*, to provide assistance to the *UCI* in fulfilling their duties under the World Anti-Doping Program. *Technical Documents* are mandatory.

Any steps and processes of the *Doping Control* under the *UCI Testing* and Investigations Regulations may be delegated by the *UCI* to a *Delegated Third Party*.

Terms used in the *UCI Testing* and Investigations Regulations that are defined terms from the *UCI ADR* are italicized. Terms that are defined in the *UCI Testing* and Investigations Regulations or another *UCI* Regulations are underlined.

2.0 UCI ADR Provisions

The following articles in the *UCI Anti-Doping Rules* are directly relevant to the *UCI Testing* and Investigations Regulations; they can be obtained by referring to the *UCI ADR* itself:

- Article 2 Anti-Doping Rule Violations
- Article 5 *Testing* and Investigations
- Article 6 Analysis of *Samples*
- Article 8 *Results Management*: Notice of Charge, Agreement, Failure to Challenge and Hearing Process
- Article 10 Sanctions on Individuals

- Article 12 Sanctions by the *UCI* Against Other Sporting Bodies
- Article 13 *Results Management: Appeals*
- Article 14 Confidentiality and Reporting
- Article 20 Additional Roles and Responsibilities of *Signatories* and *WADA*
- Article 21 Additional Roles and Responsibilities of *Riders* and Other *Persons*
- Article 23 Acceptance and Implementation

3.0 Definitions and Interpretation

3.1 Defined Terms from the *UCI* Anti-Doping Rules that are used in the *UCI Testing and Investigations Regulations*

ADAMS: The Anti-Doping Administration and Management System is a Web-based database management tool for data entry, storage, sharing, and reporting designed to assist stakeholders and *WADA* in their anti-doping operations in conjunction with data protection legislation.

Adverse Analytical Finding: A report from a *WADA*-accredited laboratory or other *WADA*-approved laboratory that, consistent with the *International Standard* for Laboratories, establishes in a *Sample* the presence of a *Prohibited Substance* or its *Metabolites* or *Markers* or evidence of the *Use* of a *Prohibited Method*.

Adverse Passport Finding: A report identified as an *Adverse Passport Finding* as described in the applicable *International Standards* or the *UCI* Regulations.

Anti-Doping Organization: *WADA* or a *Signatory* that is responsible for adopting rules for initiating, implementing or enforcing any part of the *Doping Control* process. This includes, for example, the International Olympic Committee, the International Paralympic Committee, other *Major Event Organizations* that conduct *Testing* at their *Events*, International Federations, and *National Anti-Doping Organizations*.

Athlete Biological Passport: The program and methods of gathering and collating data as described in the *International Standard* for Testing and Investigations and *International Standard* for Laboratories and applicable *UCI* Regulations.

Attempt: Purposely engaging in conduct that constitutes a substantial step in a course of conduct planned to culminate in the commission of an anti-doping rule violation. Provided, however, there shall be no anti-doping rule violation based solely on an *Attempt* to commit a violation if the *Person* renounces the *Attempt* prior to it being discovered by a third party not involved in the *Attempt*.

Atypical Finding: A report from a *WADA*-accredited laboratory or other *WADA*-approved laboratory which requires further investigation as provided by the *International Standard* for Laboratories or related *Technical Documents* prior to the determination of an *Adverse Analytical Finding*.

Atypical Passport Finding: A report described as an *Atypical Passport Finding* as described in the applicable *International Standards* or *UCI Regulations*.

CAS: The Court of Arbitration for Sport.

Code: The World Anti-Doping Code.

Competition: A single race organized separately (for example: each of the time trial and road race at the road World Championships; a stage in a stage race; a Cross-country Eliminator heat) or a series of races forming an organizational unit and producing a final winner and/or general classification (for example: a track sprint race tournament, a cyclo-ball tournament).

Consequences of Anti-Doping Rule Violations (“Consequences”): A *Rider's* or other *Person's* violation of an anti-doping rule may result in one or more of the following: (a) Disqualification means the *Rider's* results in a particular *Competition* or *Event* are invalidated, with all resulting *Consequences* including forfeiture of any medals, points and prizes; (b) Ineligibility means the *Rider* or other *Person* is barred on account of an anti-doping rule violation for a specified period of time from participating in any *Competition* or other activity or funding as provided in Article 10.14 *UCI ADR*; (c) Provisional Suspension means the *Rider* or other *Person* is barred temporarily from participating in any *Competition* or activity prior to the final decision at a hearing conducted under Article 8 *UCI ADR*; (d) Financial Consequences means a financial sanction imposed for an anti-doping rule violation or to recover costs associated with an anti-doping rule violation; and (e) Public Disclosure means the dissemination or distribution of information to the general public or *Persons* beyond those *Persons* entitled to earlier notification in accordance with Article 14 *UCI ADR*. *Teams* may also be subject to *Consequences* as provided in Article 11 *UCI ADR*.

Decision Limit: The value of the result for a threshold substance in a *Sample*, above which an *Adverse Analytical Finding* shall be reported, as defined in the *International Standard* for Laboratories.

Delegated Third Party: Any *Person* to which the *UCI* delegates any aspect of *Doping Control* or anti-doping *Education* programs including, but not limited to, third parties or other *Anti-Doping Organizations* that conduct *Sample* collection or other *Doping Control* services or anti-doping *Educational* programs for the *UCI*, or individuals serving as independent contractors who perform *Doping Control* services for the *UCI* (e.g., non-employee *Doping Control* officers or chaperones). This definition does not include CAS.

Doping Control: All steps and processes from test distribution planning through to ultimate disposition of any appeal and the enforcement of *Consequences*, including all steps and processes in between, including but not limited to, *Testing*, investigation, whereabouts, *TUEs*, *Sample* collection and handling, laboratory analysis, *Results Management* and investigations or proceedings relating to violations of Article 10.14 (Status During *Ineligibility* or *Provisional Suspension*).

Education: The process of learning to instill values and develop behaviors that foster and protect the spirit of sport, and to prevent intentional and unintentional doping.

Event: A single *Competition* organized separately (for example: a one-day road race) or a series of *Competitions* conducted together as a single organization (for example: road World

Championships; a road stage race, a track World Cup Event); a reference to *Event* includes reference to *Competition*, unless the context indicates otherwise.

Event Venues: At UCI International Events, the area where the Event is taking place as well as the accommodations where the Riders participating in such Event are staying.

In-Competition: *The Event Period.* However, for the purpose of the *Prohibited List*, *In-Competition* is the period commencing at 11:59 p.m. on the day before a *Competition* in which the *Rider* is scheduled to participate through the end of such *Competition* and the *Sample* collection process related to such *Competition*.

[Comment to In-Competition: Having a universally accepted definition for In-Competition provides greater harmonization among Riders across all sports, eliminates or reduces confusion among Riders about the relevant timeframe for In-Competition Testing, avoids inadvertent Adverse Analytical Findings in between Competitions during an Event and assists in preventing any potential performance enhancement benefits from Substances prohibited Out-of-Competition being carried over to the Competition period.]

Independent Observer Program: A team of observers and/or auditors, under the supervision of WADA, who observe and provide guidance on the *Doping Control* process prior to or during certain *Events* and report on their observations as part of WADA's compliance monitoring program.

Ineligibility: See *Consequences of Anti-Doping Rule Violations* above.

International Event: An *Event* or *Competition* where the International Olympic Committee, the International Paralympic Committee, an International Federation, a *Major Event Organization*, or another international sport organization is the ruling body for the *Event* or appoints the technical officials for the *Event*.

For the purpose of Article 5.3 UCI ADR exclusively, *International Events* are *Events* for which the UCI has *Testing* responsibility and are referred to as "*UCI International Events*". *UCI International Events* are defined annually by the UCI. The list of such *UCI International Events* is communicated to the relevant *Anti-Doping Organizations* before the start of the season and whenever required.

International-Level Rider: Riders who compete in sport at the international level, as defined in the Introduction of these Anti-Doping Rules.

[Comment to International-Level Rider: Consistent with the UCI Regulations for Testing and Investigations, the UCI is free to determine the criteria it will use to classify Riders as International-Level Riders, e.g., by ranking, by participation in particular International Events, by type of license, etc. However, it must publish those criteria in clear and concise form, so that Riders are able to ascertain quickly and easily when they will become classified as International-Level Riders. For example, if the criteria include participation in certain International Events, then the UCI must publish a list of those International Events.]

International Standard: A standard adopted by WADA in support of the *Code*. Compliance with an *International Standard* (as opposed to another alternative standard, practice or procedure) shall be sufficient to conclude that the procedures addressed by the *International*

Standard were performed properly. *International Standards* shall include any *Technical Documents* issued pursuant to the *International Standard*.

Major Event Organizations: The continental associations of *National Olympic Committees* and other international multisport organizations that function as the ruling body for any continental, regional or other *International Event*.

Marker: A compound, group of compounds or biological variable(s) that indicates the *Use* of a *Prohibited Substance* or *Prohibited Method*.

Minor: A natural *Person* who has not reached the age of eighteen years.

National Anti-Doping Organization: The entity(ies) designated by each country as possessing the primary authority and responsibility to adopt and implement anti-doping rules, direct the collection of *Samples*, manage test results, and conduct *Results Management* at the national level. If this designation has not been made by the competent public authority(ies), the entity shall be the country's *National Olympic Committee* or its designee.

National Event: A sport *Event* or *Competition* involving *International-* or *National-Level Riders* that is not an *International Event*.

National-Level Rider: *Riders* who compete in sport at the national level, as defined by each *National Anti-Doping Organization*, consistent with the *International Standard* for *Testing* and *Investigations*.

National Olympic Committee: The organization recognized by the International Olympic Committee. The term *National Olympic Committee* shall also include the National Sport Confederation in those countries where the National Sport Confederation assumes typical *National Olympic Committee* responsibilities in the anti-doping area.

Out-of-Competition: Any period which is not *In-Competition*.

Person: A natural *Person* or an organization or other entity.

Prohibited Method: Any method so described on the *Prohibited List*.

Prohibited Substance: Any substance, or class of substances, so described on the *Prohibited List*.

Protected Person: A *Rider* or other natural *Person* who at the time of the anti-doping rule violation: (i) has not reached the age of sixteen (16) years; (ii) has not reached the age of eighteen (18) years and is not included in any *Registered Testing Pool* and has never competed in any *International Event* in an open category; or (iii) for reasons other than age has been determined to lack legal capacity under applicable national legislation.

[Comment to Protected Person: The Code treats Protected Persons differently than other Riders or Persons in certain circumstances based on the understanding that, below a certain age or intellectual capacity, a Rider or other Person may not possess the mental capacity to understand and appreciate the prohibitions against conduct contained in the Code. This would include, for example, a Paralympic Athlete with a documented lack of legal capacity due to an

intellectual impairment. The term “open category” is meant to exclude competition that is limited to junior or age group categories.]

Provisional Suspension: See *Consequences of Anti-Doping Rule Violations* above.

Recreational Rider: A natural Person who is so defined by the relevant *National Anti-Doping Organization*; provided, however, the term shall not include any Person who is or was contracted to a UCI registered Team at the time of the anti-doping rule violation or within the five (5) years prior to committing any anti-doping rule violation, has been an *International-Level Rider* (as defined by each International Federation consistent with the *International Standard for Testing and Investigations*) or *National-Level Rider* (as defined by each *National Anti-Doping Organization* consistent with the *International Standard for Testing and Investigations*), has represented any country in an *International Event* in an open category or has been included within any *Registered Testing Pool* or other whereabouts information pool maintained by any International Federation or *National Anti-Doping Organization*.

[Comment to Recreational Rider: The term “open category” is meant to exclude competition that is limited to junior or age group categories.]

Registered Testing Pool: The pool of highest-priority Rider established separately at the international level by International Federations and at the national level by *National Anti-Doping Organizations*, who are subject to focused *In-Competition* and *Out-of-Competition Testing* as part of that International Federation's or *National Anti-Doping Organization's* test distribution plan and therefore are required to provide whereabouts information as provided in Article 5.5 UCI ADR and the *International Standard for Testing and Investigations*.

Results Management: The process encompassing the timeframe between notification as per Article 5 of the *International Standard for Results Management*, or in certain cases (e.g., *Atypical Finding*, *Athlete Biological Passport*, whereabouts failure), such pre-notification steps expressly provided for in Article 5 of the *International Standard for Results Management*, through the charge until the final resolution of the matter, including the end of the hearing process at first instance or on appeal (if an appeal was lodged).

Rider: Any Person subject to these Anti-Doping Rules who competes in the sport of cycling at the international level (as defined by each International Federation) or the national level (as defined by each *National Anti-Doping Organization*).

An *Anti-Doping Organization* has discretion to apply anti-doping rules to a Rider who is neither an *International-Level Rider* nor a *National-Level Rider*, and thus to bring them within the definition of “Rider”. In relation to Riders who are neither *International-Level* nor *National-Level Riders*, an *Anti-Doping Organization* may elect to: conduct limited *Testing* or no *Testing* at all; analyze *Samples* for less than the full menu of *Prohibited Substances*; require limited or no whereabouts information; or not require advance *TUEs*. However, if an anti-doping rule violation of Article 2.1, 2.3 or 2.5 UCI ADR is committed by any Rider over whom an *Anti-Doping Organization* has elected to exercise its authority to test and who competes below the international or national level, then the *Consequences* set forth in the *Code* must be applied. For purposes of Article 2.8 and Article 2.9 UCI ADR and for purposes of anti-doping information and *Education*, any Person who participates in sport under the authority of any *Signatory*, government, or other sports organization accepting the *Code* is a Rider.

[Comment to Rider: Individuals who participate in sport may fall in one of five categories: 1) International-Level Rider, 2) National-Level Rider, 3) individuals who are not International- or National-Level Riders but over whom the International Federation or National Anti-Doping Organization has chosen to exercise authority, 4) Recreational Rider, and 5) individuals over whom no International Federation or National Anti-Doping Organization has, or has chosen to, exercise authority. All International- and National-Level Riders are subject to the anti-doping rules of the Code, with the precise definitions of international and national level sport to be set forth in the anti-doping rules of the International Federations and National Anti-Doping Organizations.]

Rider Support Personnel: Any coach, trainer, manager, agent, team staff, official, medical, paramedical personnel, parent or any other *Person* working with, treating or assisting a *Rider* participating in or preparing for sports *Competition*.

Sample or Specimen: Any biological material collected for the purposes of *Doping Control*.

[Comment to Sample or Specimen: It has sometimes been claimed that the collection of blood Samples violates the tenets of certain religious or cultural groups. It has been determined that there is no basis for any such claim.]

Signatories: Those entities accepting the *Code* and agreeing to implement the *Code*, as provided in Article 23.

Substantial Assistance: For purposes of Article 10.7.1 *UCI ADR*, a *Person* providing *Substantial Assistance* must: (1) fully disclose in a signed written statement or recorded interview all information he or she possesses in relation to anti-doping rule violations or other proceeding described in Article 10.7.1.1 *UCI ADR*, and (2) fully cooperate with the investigation and adjudication of any case or matter related to that information, including, for example, presenting testimony at a hearing if requested to do so by an *Anti-Doping Organization* or hearing panel. Further, the information provided must be credible and must comprise an important part of any case or proceeding which is initiated or, if no case or proceeding is initiated, must have provided a sufficient basis on which a case or proceeding could have been brought.

Tampering: Intentional conduct which subverts the *Doping Control* process but which would not otherwise be included in the definition of *Prohibited Methods*. *Tampering* shall include, without limitation, offering or accepting a bribe to perform or fail to perform an act, preventing the collection of a *Sample*, affecting or making impossible the analysis of a *Sample*, falsifying documents submitted to an *Anti-Doping Organization* or *TUE* committee or hearing panel, procuring false testimony from witnesses, committing any other fraudulent act upon the *Anti-Doping Organization* or hearing body to affect *Results Management* or the imposition of *Consequences*, and any other similar intentional interference or *Attempted* interference with any aspect of *Doping Control*.

[Comment to Tampering: For example, this Article would prohibit altering identification numbers on a Doping Control form during Testing, breaking the B bottle at the time of B Sample analysis, altering a Sample by the addition of a foreign substance, or intimidating or attempting to intimidate a potential witness or a witness who has provided testimony or information in the Doping Control process. Tampering includes misconduct which occurs during the Results Management process. See Article 10.9.3.3. However, actions taken as part

of a Person's legitimate defense to an anti-doping rule violation charge shall not be considered Tampering. Offensive conduct towards a Doping Control official or other Person involved in Doping Control which does not otherwise constitute Tampering shall be addressed in the disciplinary rules of sport organizations.]

Target Testing: Selection of specific *Riders* for *Testing* based on criteria set forth in the *UCI Testing and Investigations Regulations*.

Technical Document: A document adopted and published by WADA from time to time containing mandatory technical requirements on specific anti-doping topics as set forth in an *International Standard*.

Testing: The parts of the *Doping Control* process involving test distribution planning, *Sample* collection, *Sample* handling, and *Sample* transport to the laboratory.

Testing Pool: The tier below the *Registered Testing Pool* which includes *Riders* from whom some whereabouts information is required in order to locate and *Test* the *Rider Out-of-Competition*.

WADA: The World Anti-Doping Agency.

3.2 Defined Terms from the *International Standard* for Laboratories:

ABP Laboratory: A laboratory not otherwise accredited by WADA, which is approved by WADA to apply Analytical Methods and processes in support of the hematological module of the ABP program and in accordance with the criteria for approval of non-accredited laboratories for the ABP.

Analytical Testing: The parts of the *Doping Control* process performed at the Laboratory, which include *Sample* handling, analysis and reporting of results.

Analytical Testing Procedure: A Fit-for-Purpose procedure, as demonstrated through method validation, and used to detect, identify and/or quantify Analytes in a *Sample* for *Doping Control* purposes in accordance with the ISL and relevant *Technical Document(s)*, Technical Letter(s) or Laboratory Guidelines. An Analytical Testing Procedure is also referred to or known as an Analytical Method or Test Method.

Athlete Passport Management Unit (APMU): A unit composed of a *Person* or *Persons* that is responsible for the timely management of *Athlete Biological Passports* in ADAMS on behalf of the Passport Custodian.

Confirmation Procedure (CP): An Analytical Testing Procedure that has the purpose of confirming the presence and/or, when applicable, confirming the concentration/ratio/score and/or establishing the origin (exogenous or endogenous) of one or more specific *Prohibited Substances*, *Metabolite(s)* of a *Prohibited Substance*, or *Marker(s)* of the *Use* of a *Prohibited Substance* or *Prohibited Method* in a *Sample*.

Further Analysis: Further Analysis, as this term is used in the ISL, occurs when a Laboratory conducts additional analysis on an “A” *Sample* or a “B” *Sample* after an analytical result for that “A” *Sample* or that “B” *Sample* has been reported by the Laboratory.

[Comment: There is no limitation on a Laboratory's authority to conduct repeat or confirmation analysis, or to analyze a Sample with additional Analytical Methods, or to perform any other type of additional analysis on an "A" Sample or "B" Sample prior to reporting an analytical result on that Sample. That is not considered Further Analysis.

If a Laboratory is to conduct additional analysis on an "A" Sample or "B" Sample after an analytical result for that Sample has been reported (for example: additional Sample analysis to detect EPO, or GC/C/IRMS analysis, or analysis in connection with the Athlete Biological Passport or additional analysis on a stored Sample) it may do so after receiving approval from the Testing Authority or Results Management Authority (if different) or WADA. However, after a Rider has been charged with a UCI ADR Article 2.1 anti-doping rule violation based on the presence of a Prohibited Substance, Metabolite(s) of a Prohibited Substance, or Marker(s) of the Use of a Prohibited Substance or Prohibited Method in a Sample, then Further Analysis on that Sample may only be performed with the consent of the Rider or approval from a hearing body (see UCI ADR Article 6.5).

Further Analysis may be performed by the same Laboratory that did the original Analytical Testing, or by a different Laboratory or other WADA-approved laboratory, at the direction of the Testing Authority or Results Management Authority (if different) or WADA. Any other Anti-Doping Organization that wishes to conduct Further Analysis on a stored Sample may do so with the permission of the Testing Authority or Results Management Authority (if different) or WADA and shall be responsible for any follow-up Results Management. Any Sample storage or Further Analysis initiated by WADA or another Anti-Doping Organization shall be at WADA's or that Anti-Doping Organization's expense.]

Laboratory: A WADA-accredited laboratory applying Test Methods and processes to provide evidentiary data for the detection and/or identification of *Prohibited Substances* or *Prohibited Methods* on the *Prohibited List* and, if applicable, quantification of a Threshold Substance in Samples of urine and other biological matrices in the context of *Doping Control* activities.

3.3 Defined Terms from the UCI Results Management Regulations:

Adaptive Model: A mathematical model designed to identify unusual longitudinal results from *Riders*. The model calculates the probability of a longitudinal profile of *Marker* values, assuming that the *Rider* has a normal physiological condition.

Failure to Comply: A term used to describe anti-doping rule violations under UCI ADR Articles 2.3 and/or 2.5.

Filing Failure: A failure by the *Rider* (or by a third party to whom the *Rider* has delegated the task) to make an accurate and complete Whereabouts Filing that enables the *Rider* to be located for *Testing* at the times and locations set out in the Whereabouts Filing or to update that Whereabouts Filing where necessary to ensure that it remains accurate and complete, all in accordance with Article 4.8 of the UCI Testing and Investigations Regulations and Annex B of the UCI Results Management Regulations.

Missed Test: A failure by the *Rider* to be available for *Testing* at the location and time specified in the 60-minute time slot identified in their Whereabouts Filing for the day in question, in accordance with Article 4.8 of the UCI Testing and Investigations Regulations and Annex B of the UCI Results Management Regulations.

Passport Custodian: The *Anti-Doping Organization* responsible for *Results Management* of that *Rider's Passport* and for sharing any relevant information associated to that *Rider's Passport* with other *Anti-Doping Organization(s)*.

Results Management Authority: The *Anti-Doping Organization* responsible for conducting *Results Management* in a given case.

Whereabouts Failure: A Filing Failure or a Missed Test.

3.4 Defined Terms from *the International Standard for the Protection of Privacy and Personal Information*:

Processing (and its cognates, **Process** and **Processed**): Collecting, accessing, retaining, storing, disclosing, transferring, transmitting, amending, deleting or otherwise making use of Personal Information.

3.5 Defined terms specific to *UCI Testing and Investigations Regulations*:

Blood Collection Officer (or BCO): An official who is qualified and has been authorized by the Sample Collection Authority to collect a blood *Sample* from a *Rider*.

Chain of Custody: The sequence of individuals or organizations who have responsibility for the custody of a *Sample* from the provision of the *Sample* until the *Sample* has been delivered to the Laboratory for analysis.

Chaperone: An official who is suitably trained and authorized by the Sample Collection Authority to carry out specific duties including one or more of the following (at the election of the Sample Collection Authority); notification of the *Rider* selected for *Sample* collection; accompanying and observing the *Rider* until arrival at the Doping Control Station; accompanying and/or observing *Riders* who are present in the Doping Control Station; and/or witnessing and verifying the provision of the *Sample* where the training specifically qualifies them to do so.

UCI ADR Article 2.4 Whereabouts Requirements: The whereabouts requirements set out in Article 4.8, which apply to *Riders* who are included in the *UCI Registered Testing Pool*.

Doping Control Coordinator: An *Anti-Doping Organization* or a *Delegated Third Party* that coordinates any aspect of *Doping Control* on behalf of the *Anti-Doping Organization*. The *Anti-Doping Organization* always remains ultimately responsible under the *UCI ADR* for compliance with the requirements of the *International Standard for Testing and Investigations*, *Therapeutic Use Exemptions*, *Protection of Privacy and Personal Information*, and *Results Management*.

Doping Control Officer (or DCO): An official who has been trained and authorized by the Sample Collection Authority to carry out the responsibilities given to DCOs in the *UCI Testing and Investigations Regulations*.

Doping Control Station: The location where the Sample Collection Session will be conducted in accordance with Article 6.3.2.

No Advance Notice Testing: *Sample* collection that takes place with no advance warning to the *Rider* and where the *Rider* is continuously chaperoned from the moment of notification through *Sample* provision.

Random Selection: Selection of *Riders* for *Testing* which is not *Target Testing*.

Risk Assessment: The assessment of risk of doping in a sport or sports discipline conducted by the *UCI* in accordance with Article 4.2.

Sample Collection Authority: The organization that is responsible for the collection of *Samples* in compliance with the requirements of the *UCI Testing* and Investigations Regulations, whether (1) the *Testing Authority* itself; or (2) a *Delegated Third Party* to whom the authority to conduct *Testing* has been granted or sub-contracted. The *Testing Authority* always remains ultimately responsible under the *UCI ADR* for compliance with the requirements of the *UCI Testing* and Investigations Regulations relating to collection of *Samples*.

Sample Collection Equipment: A and B bottles, kits or containers, collection vessels, tubes or other apparatus used to collect, hold or store the *Sample* at any time during and after the *Sample Collection Session* that shall meet the requirements of Article 6.3.4.

Sample Collection Personnel: A collective term for qualified officials authorized by the *Sample Collection Authority* to carry out or assist with duties during the *Sample Collection Session*.

Sample Collection Session: All of the sequential activities that directly involve the *Rider* from the point that initial contact is made until the *Rider* leaves the *Doping Control Station* after having provided their *Sample(s)*.

Suitable Specific Gravity for Analysis: For *Samples* with a minimum volume of 90mL and less than 150mL, specific gravity measured at 1.005 or higher with a refractometer, or 1.010 or higher with lab sticks. For *Samples* with a volume of 150mL and above, specific gravity measured at 1.003 or higher with a refractometer only.

Suitable Volume of Urine for Analysis: A minimum of 90 mL, whether the *Laboratory* will be analyzing the *Sample* for all or only some *Prohibited Substances* or *Prohibited Methods*.

Tamper Evident: Refers to having one or more indicators or barriers to entry incorporated into or, if applicable, included with the *Sample Collection Equipment*, which, if breached or missing or otherwise compromised, can provide visible evidence that *Tampering* or *Attempted Tampering* of *Sample Collection Equipment* has occurred.

Team Activity/Activities: Sporting activities carried out by *Riders* on a collective basis as part of a team (e.g., training, travelling, tactical sessions) or under the supervision of the team (e.g., treatment by a team doctor).

Technical Document for Sport Specific Analysis (TDSSA): The *Technical Document* which establishes minimum levels of analysis that *Anti-Doping Organizations* must apply to sports and sport disciplines for certain *Prohibited Substances* and/or *Prohibited Methods*, which are most likely to be abused in particular sports and sport disciplines.

Test(s): Any combination of *Sample(s)* collected (and analyzed) from a single *Rider* in a single Sample Collection Session.

Test Distribution Plan: A document written by the *UCI* that plans *Testing* on *Riders*, in accordance with the requirements of Article 4.

Testing Authority: The *Anti-Doping Organization* that authorizes *Testing* on *Riders* it has authority over. It may authorize a *Delegated Third Party* to conduct *Testing* pursuant to the authority of and in accordance with the rules of the *Anti-Doping Organization*. Such authorization shall be documented. The *Anti-Doping Organization* authorizing *Testing* remains the Testing Authority and ultimately responsible under the *UCI ADR* to ensure the *Delegated Third Party* conducting the *Testing* does so in compliance with the requirements of the *UCI Testing and Investigations Regulations*.

Unsuccessful Attempt Report: A detailed report of an unsuccessful attempt to collect a *Sample* from a *Rider* in a *Registered Testing Pool* or *Testing pool* setting out the date of the attempt, the location visited, the exact arrival and departure times at the location, the steps taken at the location to try to find the *Rider* (including details of any contact made with third parties), and any other relevant details about the attempt.

Whereabouts Filing: Information provided by or on behalf of a *Rider* in a *Registered Testing Pool* that sets out the *Rider's* whereabouts during the current and/or following quarter, in accordance with Article 4.8.

3.6 Interpretation:

- 3.6.1 The official text of the *UCI Testing and Investigations Regulations* shall be published in English and French. In the event of any conflict between the English and French versions, the English version shall prevail.
- 3.6.2 Like the *UCI ADR*, the *UCI Testing and Investigations Regulations* have been drafted giving consideration to the principles of proportionality, human rights, and other applicable legal principles. It shall be interpreted and applied in that light.
- 3.6.3 The comments annotating various provisions of the *UCI Testing and Investigations Regulations* shall be used to guide its interpretation.
- 3.6.4 Unless otherwise specified, references to Sections and Articles are references to Sections and Articles of the *UCI Testing and Investigations Regulations*.
- 3.6.5 Where the term “days” is used in the *UCI Testing and Investigations Regulations*, it shall mean calendar days unless otherwise specified.
- 3.6.6 The Annexes to the *UCI Testing and Investigations Regulations* have the same mandatory status as the rest of the *UCI Testing and Investigations Regulations*.

PART TWO: STANDARDS FOR TESTING

4.0 Planning Effective Testing

4.1 Objective

- 4.1.1 The UCI shall plan and implement intelligent *Testing* on *Riders* over whom it has authority which is proportionate to the risk of doping, and that is effective to detect and to deter such practices. The objective of Article 4 is to set out the steps that are necessary to develop a Risk Assessment and produce a Test Distribution Plan that satisfies this requirement.
- 4.1.2 The UCI shall ensure that *Rider Support Personnel* and any other *Persons* with a conflict of interest are not involved in test distribution planning for their *Riders* or in the process of selection of *Riders* for *Testing*.
- 4.1.3 The UCI shall document its Risk Assessment and Test Distribution Plan and shall provide that Risk Assessment and Test Distribution Plan to WADA where requested. The UCI must be able to demonstrate to WADA's satisfaction that it has made a proper assessment of the relevant risks and has developed and/or implemented an appropriate Test Distribution Plan based on the results of that assessment.
- 4.1.4 The UCI shall monitor, evaluate and update its Risk Assessment and Test Distribution Plan during the year/cycle in light of changing circumstances and implementing the Test Distribution Plan. It shall adapt its Test Distribution Plan to reflect new information gathered and intelligence developed by the UCI and take into account *Testing* conducted by other *Anti-Doping Organizations*.

4.2 Risk Assessment

- 4.2.1 The starting point of the Test Distribution Plan shall be a considered Risk Assessment, conducted in good faith. This assessment shall take into account (at a minimum) the following information:
 - a) The physical and other demands of the sport of cycling (and/or its disciplines), considering in particular the physiological requirements of the sport of cycling /its disciplines;
 - b) Which *Prohibited Substances* and/or *Prohibited Methods* a *Rider* would consider most likely to enhance performance in the sport of cycling/cycling disciplines;
 - c) The rewards and/or potential incentives for doping available at the different levels of the sport of cycling /its disciplines and for the nations participating in the sport /its disciplines;
 - d) The history of doping in the sport of cycling /cycling disciplines, nation(s) and/or *Event*;

[Comment to 4.2.1 (d): Unless there has been an effective Testing program in a sport, encompassing both In-Competition and Out-of-Competition Testing, a history of no or few Adverse Analytical Findings says little, if anything, about the risk of doping in that sport.]

- e) Available statistics and research findings on doping trends (e.g., anti-doping *Testing* figures and anti-doping rule violation reports published by WADA; peer-reviewed articles);
- f) Information received/intelligence developed on possible doping practices in the sport (e.g., Laboratory and APMU recommendations; Sample Collection Personnel reports; *Rider* testimony; information from criminal investigations; and/or other information received/intelligence developed in accordance with WADA's Guidelines for Information Gathering and Intelligence Sharing) in accordance with Article 11;
- g) The outcomes of previous test distribution planning cycles including past *Testing* strategies;
- h) At what points during a *Rider's* career in the sport of cycling/cycling disciplines a *Rider* would be most likely to benefit from *Prohibited Substances* and/or *Prohibited Methods*; and
- i) Given the structure of the season for the sport of cycling/cycling disciplines in question (including standard *Competition* schedules and training patterns), at what time(s) during the year/cycle a *Rider* would be most likely to benefit from *Prohibited Substances* and/or *Prohibited Methods*.

4.2.2 In developing its Test Distribution Plan, the *UCI* should consider in good faith any Risk Assessment for the sport or discipline in question carried out by another *Anti-Doping Organization* with overlapping Testing Authority. However, the *UCI* is not bound by a *National Anti-Doping Organization's* assessment of the risks of doping in a particular sport or discipline, and a *National Anti-Doping Organization* is not bound by the *UCI's* assessment of the risks of doping in the sport of cycling or its discipline.

4.2.3 In developing its Test Distribution Plan, the *UCI* shall incorporate the requirements of the TDSSA.

4.3 Defining *International-Level* and *National-Level Riders*

4.3.1 In recognition of the finite resources of *Anti-Doping Organizations*, the *UCI* ADR definition of *Rider* allows the *UCI* to focus its anti-doping programs (including *Testing*) on those who compete regularly at the international level (i.e., *International-Level Riders*, as defined in the *UCI* ADR. On the other hand, *National Anti-Doping Organizations* are allowed to limit the number of *Riders* who will be subject to their national anti-doping programs (in particular, *Testing*) to those who compete at the highest national levels (i.e., *National-Level Riders*, as defined by the *National Anti-Doping Organization*).

[Comment to 4.3.1: Nothing prevents the UCI from Testing a Rider under its authority who is not an International-Level Rider, if it sees fit, e.g., where they are competing in an International Event. Furthermore, as set out in the UCI ADR definition of Rider, a National Anti-Doping Organization may decide to extend its anti-doping program (including Testing) to Riders who compete below national level. However, the main focus of the UCI's Test Distribution Plan should be International-Level Riders, and the main focus of a National Anti-Doping Organization's Test Distribution Plan should be National-Level Riders and above.]

- 4.3.2** Therefore, once the Risk Assessment and the Test Distribution Plan described in Article 4.2 are completed, the next step is to determine the overall pool of *Riders* who are in principle going to be subject to *Testing* by the UCI, fixing an appropriate definition of *International-Level Rider*.

The UCI is free to determine the criteria it will use to classify *Riders* as *International-Level Riders*, e.g., by ranking, by participation in particular *International Events*, etc. It should make that determination in good faith, in accordance with its responsibility to protect the integrity of the sport at the international level (the showcase of the sport to the public), by fixing a definition that shall, at a minimum (and in accordance with the Risk Assessment undertaken in connection with the sport of cycling/its discipline), include those *Riders* who compete regularly at an international level and/or who compete at a standard at which world records may be set.

4.4 Prioritizing Between Sports and/or Disciplines

- 4.4.1** Next, the UCI shall consider whether there are any factors warranting allocation of *Testing* resources to one discipline or nation (as applicable) in priority to others and shall take into account without limitation their calendar of *Events*. This means having assessed the relative risks of doping:

- a) allocating *Testing* between the different disciplines and nations, within cycling.
- b) Another factor relevant to the allocation of *Testing* resources within the Test Distribution Plan will be the number of *Riders* involved at the relevant level in the sport of cycling and/or its disciplines and/or nation(s) in question. Where the risk of doping is assessed to be equal between two different disciplines or nations, more resources should be devoted to the discipline or nation involving the larger number of *Riders*.

4.5 Prioritizing Between Different *Riders*

- 4.5.1** Once the *International-Level Riders* have been defined (see Article 4.3), and the priority disciplines/nations have been established (see Article 4.4), an intelligent Test Distribution Plan uses *Target Testing* to focus *Testing* resources where they are most needed within the overall pool of *Riders*. *Target Testing* shall therefore be made a priority, i.e., a significant amount of the *Testing* undertaken as part of the UCI's Test Distribution Plan shall be *Target Testing* of *Riders* within its overall pool.

[Comment to 4.5.1: Target Testing is a priority because random Testing, or even weighted random Testing, does not ensure that all the appropriate Riders will be tested enough. The UCI ADR does not impose any reasonable suspicion or probable cause requirement for Target Testing. However, Target Testing should not be used for any purpose other than legitimate Doping Control.]

- 4.5.2** UCI shall consider conducting *Target Testing* on the following categories of *Riders*:

- a) *Riders* (especially from its priority disciplines or nations) who compete regularly at the highest level of international *Competition* (e.g., candidates for Olympic, Paralympic or World Championship medals), as determined by rankings or other suitable criteria;

- b) *Riders* serving a period of *Ineligibility* or a *Provisional Suspension*; and
- c) *Riders* who were high priority for *Testing* before they retired from the sport and who now wish to return from retirement to active participation in the sport.

[Comment to 4.5.2: Coordination between the International Federations, National Anti-Doping Organizations and other Anti-Doping Organizations shall occur in accordance with Article 4.9.]

4.5.3 Other individual factors relevant to determining which *Riders* shall be the subject of *Target Testing* shall also be considered by the *UCI*. Relevant factors may include (but are not limited to):

- a) Prior anti-doping rule violations, Test history, including any abnormal biological parameters (blood parameters, steroid profiles, as recommended by an APMU, etc.);
- b) Sport performance history, performance pattern, and/or high performance without a commensurate Test record;
- c) Repeated failure to meet whereabouts requirements;
- d) Suspicious whereabouts patterns (e.g., last-minute updates of whereabouts information);
- e) Moving to or training in a remote location;
- f) Withdrawal or absence from expected *Competition(s)*;
- g) Association with a third party (such as a team-mate, coach or doctor) with a history of involvement in doping;
- h) Injury;
- i) Age/stage of career (e.g., move from junior to senior level, nearing end of contract, approaching retirement);
- j) Financial incentives for improved performance, such as prize money or sponsorship opportunities; and/or
- k) Reliable information from a third party, or intelligence developed by or shared with the *UCI* in accordance with Article 11.

4.5.4 *Testing* which is not *Target Testing* shall be determined by Random Selection and should be conducted in accordance with the selection options in the Guidelines for Implementing an Effective *Testing* Program. Random Selection shall be conducted using a documented system for such selection. Random Selection may be either weighted (where *Riders* are ranked using pre-determined criteria in order to increase or decrease the chances of selection) or completely random (where no pre-determined criteria are considered, and *Riders* are chosen arbitrarily from a list or pool of *Rider* names). Random Selection that is weighted shall be prioritized and be conducted

according to defined criteria which may take into account the factors listed in Article 4.5.2 and 4.5.3 (as applicable) in order to ensure that a greater percentage of 'at risk' *Riders* are selected.

[Comment to 4.5.4: In addition to Target Testing, Testing by Random Selection can play an important deterrent role, as well as helping to protect the integrity of an Event.]

- 4.5.5** For the avoidance of doubt, notwithstanding the development of criteria for selection of *Riders* for *Testing*, and in particular for *Target Testing* of *Riders*, as well as the fact that as a general rule *Testing* shall take place between 6 a.m. and 11 p.m. unless (i) the *Rider* stipulates a 60-minute timeslot from 5 a.m. or, (ii) valid grounds exist for *Testing* overnight (i.e., between 11 p.m. and 6 a.m.), the fundamental principle remains (as set out in Article 5.2 of the *UCI ADR*) that a *Rider* may be required to provide a *Sample* at any time and at any place by any *Anti-Doping Organization* with authority to conduct *Testing*, whether or not the selection of the *Rider* for *Testing* is in accordance with such criteria. Accordingly, a *Rider* may not refuse to submit to *Sample* collection on the basis that such *Testing* is not provided for in the *UCI's Test Distribution Plan* and/or is not being conducted between 6 a.m. and 11 p.m., and/or that the *Rider* does not meet the relevant selection criteria for *Testing* or otherwise should not have been selected for *Testing*.

4.6 Prioritizing Between Different Types of *Testing* and *Samples*

- 4.6.1** Based on the Risk Assessment and prioritization process described in Articles 4.2 to 4.5, the *UCI* must determine to what extent each of the following types of *Testing* is required in order to detect and deter doping practices within the relevant sport(s), discipline(s) and/or nation(s), intelligently and effectively:

- a) *In-Competition Testing* and *Out-of-Competition Testing*;
- b) *Testing* of urine;
- c) *Testing* of blood;
- d) *Testing* involving longitudinal profiling, i.e., the *Athlete Biological Passport* program; and
- e) *Testing* of dried blood spots.

[Comment to 4.6.1 (c), (d) and (e): The requirements for blood in this UCI Regulations for Testing and Investigations apply, without limitation to Samples collected by venipuncture in accordance with Annex D - Collection of Venous Blood Samples and Annex I - Collection, Storage and Transport of Blood Athlete Biological Passport Samples and by capillary blood sampling in accordance with Annex J - Collection, Storage and Transport of Dried Blood Spot Samples; however, different requirements apply depending on the Sample Collection Equipment and the requested analyses e.g., specific requirements apply for dried blood spot Samples, which are collected and allowed to dry on an absorbent Sample support (i.e., dried blood spot cellulose card or other equipment made of another material.)]

4.7 Sample Analysis, Retention Strategy and Further Analysis

- 4.7.1** The *UCI* shall ask Laboratories to analyze *Samples* for the standard analysis menu based on whether the *Sample* was collected *In-Competition* or *Out-of-Competition*. The *UCI* may also consider undertaking more extensive *Sample* analysis for *Prohibited Substances* or *Prohibited Methods* beyond those contained (or the levels required) within the TDSSA based on the risk of the sport/discipline/country or any intelligence that the *UCI* may receive.
- 4.7.2** The *UCI* may apply to *WADA* for flexibility in the implementation of the minimum levels of analysis specified for *Prohibited Substances* or *Prohibited Methods* as outlined in the TDSSA.
- 4.7.3** The *UCI* shall develop a written strategy for retention of *Samples* and the documentation relating to the collection of such *Samples* so as to enable the Further Analysis of such *Samples* at a later date in accordance with Articles 6.5 and 6.6 of the *UCI* ADR. Such strategy shall comply with the requirements of the *International Standard* for Laboratories and the *International Standard* for the Protection of Privacy and Personal Information, and shall take into account the purposes of analysis of *Samples* set out in Article 6.2 of the *UCI* ADR, as well as (without limitation) the following elements:
- a) Laboratory and APMU recommendations;
 - b) The possible need for retroactive analysis in connection with the *Athlete Biological Passport* program;
 - c) New detection methods to be introduced in the future relevant to the *Rider* and/or discipline;
 - d) *Samples* collected from *Riders* meeting some or all of the criteria set out at Article 4.5;
 - e) Any other information made available to the *UCI* justifying long-term storage or Further Analysis of *Samples* at the *UCI*'s discretion.

4.8 Collecting Whereabouts Information

- 4.8.1** Whereabouts information is not an end in itself, but rather a means to an end, namely the efficient and effective conduct of No Advance Notice Testing. Therefore, where the *UCI* has determined that it needs to conduct *Testing* (including *Out-of-Competition Testing*) on particular *Riders*, it shall then consider how much information it needs about the whereabouts of those *Riders* in order to conduct that *Testing* effectively and with no advance notice. The *UCI* must collect all of the whereabouts information that it needs to conduct the *Testing* identified in its Test Distribution Plan effectively and efficiently. In addition, the amount of whereabouts information requested shall be proportional to the whereabouts pool and the number of times the *UCI* intends to test the *Rider*.

4.8.2 In accordance with Articles 5.5 and 14.6 of the *UCI ADR*, the *UCI* may collect whereabouts information and shall use *ADAMS* to conduct effective *Doping Control*. As a result, such information shall be automatically available through *ADAMS* to *WADA* and other relevant *Anti-Doping Organizations* with overlapping Testing Authority. This information shall:

- a) Be maintained in strict confidence at all times;
- b) Be used for purposes of planning, coordinating or conducting *Doping Control*;
- c) Be relevant to the *Athlete Biological Passport* or other analytical results;
- d) Support an investigation into a potential anti-doping rule violation; and/or
- e) Support proceedings alleging an anti-doping rule violation.

4.8.3 Where the *UCI* has determined that it needs to conduct *Out-of-Competition Testing* on particular *Riders* following its Risk Assessment (in accordance with Article 4.2) and the prioritization steps (in Articles 4.3 to 4.7), it shall then consider how much whereabouts information it needs for those *Riders* in order to conduct No Advance Notice Testing effectively.

4.8.4 The *UCI* has adopted a 'pyramid' or 'tiered approach', placing *Riders* into different whereabouts pools, referred to as the *Registered Testing Pool*, *Testing Pool* and other pool(s), depending upon how much whereabouts information it needs to conduct the amount of *Testing* allocated to those *Riders* in the Test Distribution Plan.

In accordance with the foregoing, four different tiers are established:

- Tier 1: *Riders* included in the *UCI Registered Testing Pool* (RTP) and therefore required to provide full whereabouts information;
- Tier 2: *Riders* included in the *UCI Testing Pool* (TP) and therefore required to provide limited whereabouts information;
- Tier 3: *Riders* included in the *UCI General Pool* (GP) and whose whereabouts information is therefore limited to that collected from their *Team*;
- Tier 4: *Riders* who are not required to provide whereabouts information.

4.8.5 The *UCI* shall be able to demonstrate to *WADA* that it has conducted an appropriate risk-based approach in allocating *Riders* to their whereabouts pool(s) and has allocated sufficient *Out-of-Competition Tests* in its Test Distribution Plan as required in Articles 4.8.6.1 and 4.8.10.1.

4.8.6 *UCI Registered Testing Pool*

4.8.6.1 The top tier is the *UCI Registered Testing Pool* and includes *Riders* that are subject to the greatest amount of *Testing* and are therefore required to provide whereabouts in accordance with Article 4.8.6.2. *Riders* in the

Registered Testing Pool shall be subject to Article 2.4 of the UCI ADR Whereabouts Requirements.

The *UCI* shall consider the following criteria for including *Riders* into a *Registered Testing Pool*:

- a) *Riders* who meet the criteria listed in Articles 4.5.2 and 4.5.3;
- b) *Riders* whom the *UCI* plans to Test at least three (3) times per year *Out-of-Competition* (either independently or in agreed coordination with other *Anti-Doping Organizations* with Testing Authority over the same *Riders*);
- c) *Riders* who are part of the *UCI*'s hematological module of the *Athlete Biological Passport* program as required by the TDSSA;
- d) *Riders* in the *UCI Testing* pool who fail to comply with the applicable whereabouts requirements of that pool;
- e) *Riders* for whom there is insufficient whereabouts information available from other sources for the *UCI* or *National Anti-Doping Organization* to locate them for that *Testing*; and
- f) *Riders* who are serving a period of *Ineligibility*.

[Comment to 4.8.6.1: Following consideration of points a) to f) above and once the Riders in the Registered Testing Pool are determined, the UCI or the National Anti-Doping Organization shall plan, independently or in coordination with other Anti-Doping Organizations, to test any Rider included in the Registered Testing Pool a minimum of three (3) times Out-of-Competition per year.]

4.8.6.2 A *Rider* who is in the *UCI Registered Testing Pool* shall:

- a) Make quarterly Whereabouts Filings that provide accurate and complete information about the *Rider's* whereabouts during the forthcoming quarter, including identifying where they will be living, training and competing during that quarter, and to update those Whereabouts Filings where necessary, so that they can be located for *Testing* during that quarter at the times and locations specified in the relevant Whereabouts Filing, as specified in Article 4.8.8. A failure to do so may be declared a Filing Failure; and
- b) Specify in their Whereabouts Filings, for each day in the forthcoming quarter, one specific 60-minute time slot where they will be available at a specific location for *Testing*, as specified in Article 4.8.8.3. This does not limit in any way the *Rider's* *UCI ADR* Article 5.2 obligation to submit to *Testing* at any time and place upon request by an *Anti-Doping Organization* with authority to conduct *Testing* on them. Nor does it limit their obligation to provide the information specified in Article 4.8.8.2 as to their whereabouts outside that 60-minute time slot. However, if the

Rider is not available for *Testing* at such location during the 60-minute time slot specified for that day in their Whereabouts Filing, that failure may be declared a Missed Test.

[Comment to 4.8.6.2 (b): The purpose of the 60-minute time slot is to strike a balance between the need to locate the Rider for Testing and the impracticality and unfairness of making Riders potentially accountable for a Missed Test every time they depart from their previously-declared routine.]

4.8.6.3 *Anti-Doping Organizations* with authority to conduct *Testing* on a *Rider* in a *Registered Testing Pool* shall conduct *Out-of-Competition Testing* on that *Rider* using the *Rider's Whereabouts Filing*. Although UCI ADR Article 2.4 Whereabouts Requirements include the provision of a 60-minute time slot, *Testing* shall not be limited to the 60-minute time slot provided by the *Rider*. To ensure *Out-of-Competition Testing* is unpredictable to the *Rider*, *Anti-Doping Organizations* shall also consider other whereabouts information provided e.g., regular activities to test the *Rider*.

4.8.6.4 The *UCI* or *National Anti-Doping Organization* that maintains a *Registered Testing Pool* shall use ADAMS to ensure that:

- a) The information provided by the *Rider* is stored safely and securely;
- b) The information can be accessed by (i) authorized individuals acting on behalf of the *UCI* or *National Anti-Doping Organization* (as applicable) on a need-to-know basis only; (ii) *WADA*; and (iii) other *Anti-Doping Organizations* with authority to conduct *Testing* on the *Rider* in accordance with *UCI ADR Article 5.2*; and
- c) The information is maintained in strict confidence at all times, is used exclusively for the purposes set out in *UCI ADR Article 5.5* and is destroyed in accordance with the *International Standard* for the Protection of Privacy and Personal Information once it is no longer relevant.

4.8.6.5 *Riders* under the Testing Authority of a *National Anti-Doping Organization* and *UCI* should only be in one *Registered Testing Pool*. While being included in more than one *Registered Testing Pool* is possible, *Riders* shall only file one set of whereabouts information. If the *Rider* is included in the *UCI Registered Testing Pool* and in the *National Anti-Doping Organization's Registered Testing Pool* (or in the *Registered Testing Pool* of more than one *National Anti-Doping Organization* or more than one *International Federation*), then each of them shall notify in writing the *Rider* that they are in its pool. Prior to doing so, however, they shall agree between themselves to whom the *Rider* shall provide their Whereabouts Filings, and that *Anti-Doping Organization* shall be the whereabouts custodian. Each notice sent to the *Rider* shall specify that they shall provide their Whereabouts Filings to that *Anti-Doping Organization* only (and it will then share that information with the other, and with any other *Anti-Doping Organizations* having authority to conduct *Testing* on that *Rider*).

[Comment to 4.8.6.5: If the UCI and the respective Anti-Doping Organizations cannot agree between themselves on which of them will take responsibility for collecting the Rider's whereabouts information, and for making it available to the other Anti-Doping Organizations with authority to test the Rider, then they should each explain in writing to WADA how they believe the matter should be resolved, and WADA will decide based on the best interests of the Rider. WADA's decision will be final and may not be appealed.]

4.8.7 Entering and Leaving the *UCI Registered Testing Pool*

4.8.7.1 The *UCI* shall notify in writing each *Rider* designated for inclusion in the *UCI Registered Testing Pool* of the following:

- a) The fact that they have been included in the *UCI Registered Testing Pool* with effect from a specified date in the future;
- b) The whereabouts requirements with which they shall therefore comply;
- c) The *Consequences* if they fail to comply with those whereabouts' requirements; and
- d) That they may also be tested by other *Anti-Doping Organizations* with authority to conduct *Testing*.

[Comment to 4.8.7.1: This notification may be made through the National Federation or National Olympic Committee where the UCI considers it appropriate or expedient to do so and ordinarily shall be made reasonably in advance of the Rider being included in the UCI Registered Testing Pool. The notice shall also explain what the Rider needs to do in order to comply with the UCI ADR Article 2.4 Whereabouts Requirements (or refer them to a website or other resource where they can find out that information). Riders included in the UCI Registered Testing Pool shall be informed and should be educated so that they understand the whereabouts requirements that they must satisfy, how the whereabouts system works, the Consequences of Filing Failures and Missed Tests, and their right to contest Filing Failures and Missed Tests that have been asserted against them.

Anti-Doping Organizations should also be proactive in helping Riders avoid Filing Failures. For example, many Anti-Doping Organizations systematically remind Riders in their Registered Testing Pool of quarterly deadlines for Whereabouts Filings, and then follow up with those Riders who have still not made the necessary filing as the deadline approaches. However, Riders remain fully responsible for complying with the filing requirements, irrespective of whether or not the Anti-Doping Organization has provided them with such support.]

4.8.7.2 A *Rider* who has been included in the *UCI Registered Testing Pool* shall continue to be subject to the UCI ADR Article 2.4 Whereabouts Requirements unless and until:

- a) They have been given written notice by the *UCI* that they no longer meet the criteria for inclusion in the *UCI Registered Testing Pool*; or
- b) They give written notice of their retirement to the *UCI*.

[Comment to 4.8.7.2: The applicable rules may also require that written notice of retirement be sent to the Rider's National Federation. Where a Rider retires from but then returns to sport, the

period of retirement shall be disregarded for purposes of calculating the 12-month period referred to in UCI ADR Article 2.4. For avoidance of doubt, removal of a Rider from the UCI's RTP in accordance with Article 4.8.7.2 has no bearing on the Rider's inclusion in any other National Anti-Doping Organisation or other International Federation RTP. Same applies if Rider is excluded from another Anti-Doping Organization's RTP and not from the UCI's. The Rider remains bound by such inclusion(s) as per such Anti-Doping Organisation's rules and instructions.

Retirement is effective once the UCI has received the Rider's written notice of his/her retirement.]

4.8.8 Whereabouts Filing Requirements for Riders in a Registered Testing Pool

4.8.8.1 The UCI shall review *Riders' Whereabouts Filings* to ensure they are submitted in accordance with Articles 4.8.8.2 and 4.8.8.3.

4.8.8.2 *Riders in the UCI Registered Testing Pool shall file, by the 15th of the month preceding the quarter (i.e. 15 December, 15 March, 15 June, 15 September), a Whereabouts Filing that contains at least the following information:*

[Comment to 4.8.8.2: To facilitate planning and readiness for Testing on the first day of the quarter (as countenanced in Article 4.8.8.2), Anti-Doping Organizations may require that whereabouts information is submitted on a date which is the 15th of the month preceding the quarter. However, no Consequences for a failure to submit prior to the first day of the quarter shall apply.]

- a) A complete mailing address and personal e-mail address where correspondence may be sent to the *Rider* for formal notice purposes. Any notice or other item mailed to that address will be deemed to have been received by the *Rider* seven (7) days after it was deposited in the mail and immediately when notification of a sent e-mail receipt is generated/obtained (subject to applicable law);
- b) A designated phone number that the UCI may use;
- c) Specific confirmation that the *Rider* understands that their Whereabouts Filing will be shared with other *Anti-Doping Organizations* that have authority to conduct *Testing* on them;
- d) For each day during the following quarter, the full address of the place where the *Rider* will be staying overnight (e.g., home, temporary lodgings, hotel, etc.);
- e) For each day during the following quarter, the name and address of each location where the *Rider* will train, work or conduct any other regular activity (e.g., school), as well as the usual time frames for such regular activities;

[Comment to 4.8.8.2 (e): This requirement applies only to activities that are part of the Rider's regular routine. For example, if the Rider's regular routine includes training at the gym, the pool and the track, and regular physio sessions, then the Rider should provide the name and address of the gym, pool, track and physio in their Whereabouts Filing, and then set out their usual routine, e.g., "Mondays: 9-11 gym, 13-17 gym; Tuesdays: 9-11 gym, 16-18 gym; Wednesdays: 9-11 track,

3-5 physio; Thursdays: 9-12 gym, 16-18 track, Fridays: 9-11 pool, 3-5 physio; Saturdays: 9-12 track, 13-15 pool; Sundays: 9-11 track, 13-15 pool". If the Rider is not currently training, they should specify that in their Whereabouts Filing and detail any other routine that they will be following in the forthcoming quarter, e.g., their work routine, or school schedule, or rehab routine, or other routine, and identify the name and address of each location where that routine is conducted and the time frame during which it is conducted.

In the case of a Team Sport or other sport where competing and/or training are carried out on a collective basis, the Rider's regular activities are likely to include most, if not all, Team Activities.]

- f) The Rider's Competition/Event schedule for the following quarter, including the name and address of each location where the Rider is scheduled to compete during the quarter and the date(s) and time(s) at which they are scheduled to compete at such location(s);
- g) The Rider's travel schedule; and
- h) Any additional information deemed necessary to enable any Anti-Doping Organisation wishing to locate the Rider for Testing.

4.8.8.3 The Whereabouts Filing must also include, for each day during the following quarter, one specific 60-minute time slot between 5 a.m. and 11 p.m. each day where the Rider will be available and accessible for Testing at a specific location.

This does not limit in any way the Rider's obligation to submit to Testing at any time and place upon request by an Anti-Doping Organization with Testing Authority over him/her. Nor does it limit his/her obligation to provide the information specified in Article 4.8.8.2 as to his/her whereabouts outside that 60-minute time slot.

[Comment to 4.8.8.3: The Rider can choose which 60-minute time slot between 5 a.m. and 11 p.m. to use for this purpose, provided that during the time slot in question they are somewhere accessible by the DCO. It could be the Rider's place of residence, training or Competition, or it could be another location (e.g., work or school). A Rider is entitled to specify a 60-minute time slot during which they will be at a hotel, apartment building, gated community or other location where access to the Rider is obtained via a front desk, or security guard. It is up to the Rider to ensure accessibility to their selected 60-minute location with no advance warning to the Rider. In addition, a Rider may specify a time slot when they are taking part in a Team Activity. In either case, however, any failure to be accessible and available for Testing at the specified location during the specified time slot shall be pursued as a Missed Test.]

4.8.8.4 It is the Rider's responsibility to ensure that they provide all of the information required in a Whereabouts Filing as outlined in Articles 4.8.8.2 and 4.8.8.3 accurately and in sufficient detail to enable any Anti-Doping Organization wishing to do so to locate the Rider for Testing on any given day in the quarter at the times and locations specified by the Rider in their Whereabouts Filing for that day, including but not limited to during the 60-minute time slot specified for that day in the Whereabouts Filing.

- a) More specifically, the *Rider* shall provide sufficient information to enable the DCO to find the location, to gain access to the location, and to find the *Rider* at the location with no advance notice to the *Rider*. A failure to do so may be pursued as a Filing Failure and/or (if the circumstances so warrant) as evasion of *Sample* collection under UCI ADR Article 2.3, and/or *Tampering* or *Attempted Tampering* with *Doping Control* under UCI ADR Article 2.5. In any event, the *Anti-Doping Organization* shall consider *Target Testing* of the *Rider*.

*[Comment to 4.8.8.4 (a): For example, declarations such as “riding in the Black Forest” are insufficient and are likely to result in a Filing Failure. Similarly, specifying a location that the DCO cannot access (e.g., a “restricted-access” building or area) is likely to result in a Filing Failure. The *Anti-Doping Organization* may be able to determine the insufficiency of the information from the Whereabouts Filing itself, or alternatively it may only discover the insufficiency of the information when it attempts to test the *Rider* and is unable to locate them. In either case, the matter should be pursued as an apparent Filing Failure, and/or (where the circumstances warrant) as an evasion of *Sample* collection under UCI ADR Article 2.3, and/or as *Tampering* or *Attempting to Tamper* with *Doping Control* under UCI ADR Article 2.5. Further information on Whereabouts Filing requirements can be found in WADA’s *Guidelines for Implementing an Effective Testing Program*. Where a *Rider* does not know precisely what their whereabouts will be at all times during the forthcoming quarter, they must provide their best information, based on where they expect to be at the relevant times, and then update that information as necessary in accordance with Article 4.8.8.5.]*

- b) If the *Rider* is tested during the 60-minute time slot, the *Rider* must remain with the DCO until the *Sample* collection has been completed, even if this takes longer than the 60-minute time slot. A failure to do so shall be pursued as an apparent violation of UCI ADR Article 2.3 (refusal or failure to submit to *Sample* collection).
- c) If the *Rider* is not available for *Testing* at the beginning of the 60-minute time slot but becomes available for *Testing* later on in the 60-minute time slot, the DCO should collect the *Sample* and should not process the attempt as an unsuccessful attempt to test but should report the details of the delay in availability of the *Rider*. Any pattern of behaviour of this type should be investigated as a possible anti-doping rule violation of evading *Sample* collection under UCI ADR Article 2.3 or UCI ADR Article 2.5. It may also prompt *Target Testing* of the *Rider*. If a *Rider* is not available for *Testing* during their specified 60-minute time slot at the location specified for that time slot for that day, they will be liable for a Missed Test even if they are located later that day and a *Sample* is successfully collected from them.
- d) Once the DCO has arrived at the location specified for the 60-minute time slot, if the *Rider* cannot be located immediately, then the DCO should remain at that location for whatever time is left of the 60-minute time slot and during that remaining time they should do what is reasonable in the circumstances to try to locate the *Rider*.

*[Comment to 4.8.8.4 (d): Where an *Rider* has not been located despite the DCO’s reasonable efforts, and there are only five (5) minutes left within the 60-minute time*

slot, then as a last resort the DCO may (but does not have to) telephone the Rider (assuming they have provided their telephone number in their Whereabouts Filing) to see if they are at the specified location. If the Rider answers the DCO's call and is available at (or in the immediate vicinity of) the location for immediate Testing (i.e., within the 60-minute time slot), then the DCO should wait for the Rider and should collect the Sample from them as normal. However, the DCO should also make a careful note of all the circumstances, so that it can be decided if any further investigation should be conducted. In particular, the DCO should make a note of any facts suggesting that there could have been Tampering or manipulation of the Rider's urine or blood in the time that elapsed between the phone call and the Sample collection. If the Rider answers the DCO's call and is not at the specified location or in the immediate vicinity, and so cannot make himself/herself available for Testing within the 60-minute time slot, the DCO should file an Unsuccessful Attempt Report.]

- 4.8.8.5** Where a change in circumstances means that the information in a Whereabouts Filing is no longer accurate or complete as required by Article 4.8.8.4, the Rider shall file an update so that the information on file is again accurate and complete. The Rider must always update their Whereabouts Filing to reflect any change in any day in the quarter in question in particular; (a) in the time or location of the 60-minute time slot specified in Article 4.8.8.3; and/or (b) in the place where they are staying overnight. The Rider shall file the update as soon as possible after they become aware of the change in circumstances, and in any event prior to the 60-minute time slot specified in their filing for the relevant day. A failure to do so may be pursued as a Filing Failure and/or (if the circumstances so warrant) as evasion of Sample collection under UCI ADR Article 2.3, and/or Tampering or Attempted Tampering with Doping Control under UCI ADR Article 2.5. In any event, the Anti-Doping Organization shall consider Target Testing of the Rider.

[Comment to 4.8.8.5: The Anti-Doping Organization collecting the Rider's Whereabouts Filings should provide appropriate mechanisms (e.g., phone, fax, Internet, email, SMS, approved social networking sites or applications) to facilitate the filing of such updates. It is the responsibility of each Anti-Doping Organization with authority to conduct Testing on the Rider to ensure that it checks for any updates filed by the Rider prior to attempting to collect a Sample from the Rider based on their Whereabouts Filing. For the avoidance of doubt, however, a Rider who updates their 60-minute time slot for a particular day prior to the original 60-minute slot must still submit to Testing during the original 60-minute time slot, if they are located for Testing during that time slot.]

4.8.9 Availability for Testing

- 4.8.9.1** Every Rider must submit to Testing at any time and place upon request by an Anti-Doping Organization with authority to conduct Testing. In addition, a Rider in a Registered Testing Pool must specifically be present and available for Testing on any given day during the 60-minute time slot specified for that day in their Whereabouts Filing, at the location that the Rider has specified for that time slot.

[Comment to 4.8.9.1: For Testing to be effective in deterring and detecting cheating, it should be as unpredictable as possible. Therefore, the intent behind the 60-minute time slot is not to limit Testing to that period, or to create a 'default' period for Testing, but rather:

- a) *To make it very clear when an unsuccessful attempt to test a Rider will count as a Missed Test;*
- b) *To guarantee that the Rider can be found, and a Sample can be collected, at least once per day (which should deter doping, or, as a minimum, make it far more difficult);*
- c) *To increase the reliability of the rest of the whereabouts information provided by the Rider, and so to assist the Anti-Doping Organization in locating the Rider for Testing outside the 60-minute time slot. The 60-minute time slot “anchors” the Rider to a certain location for a particular day. Combined with the information that the Rider must provide as to where they are staying overnight, training, competing and conducting other ‘regular’ activities during that day, the Anti-Doping Organization should be able to locate the Rider for Testing outside the 60-minute time slot; and*
- d) *To generate useful anti-doping intelligence, e.g., if the Rider regularly specifies time slots with large gaps between them, and/or changes his time slot and/or location at the last minute. Such intelligence can be relied upon as a basis for the Target Testing of such Rider.]*

4.8.10 UCI Testing Pool

4.8.10.1 The tier below the *UCI Registered Testing Pool* is the *UCI Testing Pool* and should include *Riders* from whom some whereabouts information is required in order to locate and test the *Rider* at least once per year *Out-of-Competition*.

UCI shall consider the following criteria for including *Riders* into the *UCI Testing pool*:

- a) *Riders* whom the *UCI* plans to test at least once per year *Out-of-Competition* (either independently or in agreed coordination with other *Anti-Doping Organizations* with Testing Authority over the same *Riders*);
- b) *Riders* that have sufficient whereabouts information to locate them for *Testing* through regular team *Competition/Event* and Team Activities.

4.8.10.2 The *UCI* shall notify each *Rider* designated for inclusion in the *UCI Testing Pool* of the following:

- a) The fact that they have been included in the *UCI Testing Pool* with effect from a specified date in the future;
- b) The whereabouts requirements with which they shall therefore comply;
- c) The *Consequences* if they fail to comply with those whereabouts' requirements; and
- d) That they may also be tested by other *Anti-Doping Organizations* with authority to conduct *Testing*.

4.8.10.3 *Riders* who have been included in the *UCI Testing Pool* shall continue to be subject to the obligation to comply with the whereabouts requirements unless and until:

- a) They have been given written notice by the *UCI* that they are no longer designated for inclusion in the *UCI Testing Pool*; or
- b) They give written notice of their retirement to the *UCI*.

[Comment to 4.8.10.3: Retirement is effective once the UCI has received the Rider's written notice of his/her retirement.]

4.8.10.4 *Riders* who no longer meet the criteria for inclusion in the *UCI Testing Pool* shall be removed from the *UCI Testing Pool*.

4.8.10.5 *Riders* in the *UCI Testing Pool* shall file, by the 15th of the month preceding the quarter (i.e. 15 December, 15 March, 15 June, 15 September), a Whereabouts Filing that contains the information provided under Article 4.8.8.2 only.

4.8.10.6 *Riders* included in the *UCI Testing Pool* shall not be subject to *Consequences* for Article 2.4 violations (Whereabouts Failure by a Rider) as provided in *UCI ADR* Article 10.3.2.

A *Rider's* failure to comply with the requirements of the *UCI Testing & Investigations Regulations* might result in the *UCI* elevating the *Rider* to the *UCI Registered Testing Pool*.

In addition, to ensure accurate whereabouts are filed and maintained by *Riders* in the *UCI Testing Pool*, the *UCI* may, within its rules and procedures, include appropriate and proportionate non-*UCI ADR* Article 2.4 consequences to individual *Riders* or teams who are part of its *Testing Pool* if:

- a) the whereabouts information is not filed on the date(s) stated in the rules; or
- b) the whereabouts information is not found to be accurate following an attempt to test; or
- c) information is obtained that is contrary to the whereabouts information provided.

[Comment to Article 4.8.10.6: Such consequences may be in addition to the elevation of a Rider into the Registered Testing Pool].

4.8.10.7 Whereabouts for *Riders* in the *UCI Testing Pool* should also be filed in *ADAMS* to enable better *Testing* coordination between *Anti-Doping Organizations*. The *UCI* or a *National Anti-Doping Organization* may also request whereabouts schedules with more regular deadlines e.g., weekly, monthly or quarterly within their rules or procedures which better suit the needs and demands of Team Activities in the relevant sport(s).

4.8.11 Other Pool(s)

4.8.11.1 The *UCI* may implement other pool(s) for *Riders* who do not meet the criteria of Article 4.5.2 and where diminishing whereabouts requirements may be defined by the *UCI*. *Riders* in such pool(s) are not subject to *UCI ADR Article 2.4 Whereabouts Requirements*.

4.8.12 Selecting *Riders* for Different Whereabouts Pools and Coordination Between the *UCI* and *National Anti-Doping Organizations*.

4.8.12.1 The *UCI* has the discretion to select which *Rider* goes into which type of whereabouts pool. However, the *UCI* shall be able to demonstrate they have made a proper assessment of the relevant risks, the necessary prioritization in accordance with Articles 4.2 to 4.7, and that they have adopted appropriate criteria based on the results of that assessment.

4.8.12.2 Once the *UCI* has selected *Riders* for its *Registered Testing Pool*, it shall share and maintain the list of *Riders* through *ADAMS* with the relevant *National Anti-Doping Organization*.

4.8.12.3 If a *Rider* is in one whereabouts pool of the *UCI* and another whereabouts pool for their *National Anti-Doping Organization*, he/she shall file their whereabouts and comply with whichever whereabouts pool has the greater whereabouts requirements.

4.8.12.4 The *UCI* and *National Anti-Doping Organizations* shall coordinate *Rider* whereabouts pool selection and *Testing* activities to avoid duplication and maximize use of resources. As a result of such coordination and resource efficiencies, either the *UCI* or *National Anti-Doping Organization* shall consider adding more *Riders* to its *Registered Testing Pool* or *Testing Pool* to ensure a greater level of *Testing* is conducted across a wider range of “at risk” *Riders*.

4.8.12.5 The *UCI* and each *National Anti-Doping Organization* shall:

- a) Regularly review and update as necessary their criteria for including *Riders* in their *Registered Testing Pool* and *Testing Pool(s)* to ensure that they remain fit for purpose, i.e., they are capturing all appropriate *Riders*. They shall take into account the *Competition/Event* calendar for the relevant period and change or increase the number of *Riders* in the *Registered Testing Pool* or *Testing Pool* in the lead-up to a major *Event* (e.g., Olympic Games, Paralympic Games, World Championship and other multi-sport *Events*) to ensure those *Riders* participating are subject to a sufficient level of *Out-of-Competition Testing* in accordance with any *Risk Assessment*.
- b) Periodically review during the year/cycle in light of changing circumstances the list of *Riders* in their *Registered Testing Pool* and *Testing Pool(s)* to ensure that each listed *Rider* continues to meet the relevant criteria. *Riders* who no longer meet the criteria should be

removed from the *Registered Testing Pool* and/or *Testing Pool* and *Riders* who now meet the criteria should be added. The *UCI* and *National Anti-Doping Organization* shall advise such *Riders* of the change in their status and make a new list of *Riders* in the applicable pool available, without delay.

4.8.13 Major Event Organizations

For periods when *Riders* come under the Testing Authority of a *Major Event Organization*:

- a) If the *Riders* are in the *UCI Registered Testing Pool* or the *UCI Testing Pool*, then the *Major Event Organization* may access their Whereabouts Filings for the relevant period in order to conduct *Out-of-Competition Testing* on them; or
- b) The *Major Event Organization* may adopt *Event-specific* rules, including consequences requiring *Riders* or the relevant third party to provide such information about their whereabouts for the relevant period as it deems necessary and proportionate in order to conduct *Out-of-Competition Testing*.

4.8.14 Whereabouts Responsibilities

4.8.14.1 Notwithstanding any other provision of Article 4.8:

- a) The *UCI* may propose, and a *National Anti-Doping Organization* may agree to, the delegation of some or all of the whereabouts responsibilities of the *UCI* under Article 4.8 to the *National Anti-Doping Organization* or Doping Control Coordinator subject to (e) below;
- b) The *UCI* may delegate some or all of its whereabouts responsibilities under Article 4.8 to the *Rider's National Federation* or Doping Control Coordinator subject to (e) below; or
- c) Where no appropriate *National Anti-Doping Organization* exists, the *National Olympic Committee* shall assume the whereabouts responsibilities of the *National Anti-Doping Organization* set out in Article 4.8; and
- d) Where *WADA* determines that the *UCI* is not discharging some or all of its whereabouts responsibilities under Article 4.8, *WADA* may delegate some or all of those responsibilities to any other appropriate *Anti-Doping Organization*.
- e) At all times the *Anti-Doping Organization* (whether the *International Federation*, *National Anti-Doping Organization* or other *Anti-Doping Organization* with authority over the *Rider* in question) that delegates its responsibilities (in whole or in part) to a *National Federation* or Doping Control Coordinator remains ultimately responsible for the acts and/or omissions of such entity to whom it has delegated authority.

4.8.14.2 A National Federation must use its best efforts to assist the *UCI* and/or *National Anti-Doping Organization* (as applicable) in collecting whereabouts from *Riders* who are subject to that National Federation's authority, including (without limitation) making special provision in its rules for that purpose.

4.8.14.3 Without prejudice to the *Rider's* obligations described in Article 4.8, during races, to enable the DCO to locate the *Rider* in an efficient manner, the *Team* shall provide a detailed list of its *Riders'* accommodations to the Sample Collection Authority as soon the information becomes available.

[Comment to 4.8.14.3: For the sake of clarity, this list shall indicate the precise address of the accommodations and exact room number for each Rider.]

Failure to provide correct information about Rider's whereabouts or Refusal to give information (such as the list of accommodations referred to above) or Obstructing Testing in any other way may be pursued (if the circumstances so warrant) as an anti-doping violation under article UCI ADR 2.5 (Tampering or Attempted Tampering) against the Rider Support Personnel.]

4.8.14.4 A *Rider* may choose to delegate the task of filing their whereabouts (and/or any updates thereto) to a third party, such as a coach, a manager or a *National Federation*, provided that the third party agrees to such delegation. The *Anti-Doping Organization* collecting the *Rider's* whereabouts may require written notice of any agreed delegation to be filed with it, signed by both the *Rider* in question and the third-party delegate.

[Comment to 4.8.14.4: For example, a Rider participating in a Team Sport or other sport where competing and/or training is carried out on a collective basis, may delegate the task of filing their whereabouts to the team, to be carried out by a coach, a manager or a National Federation. Indeed, for the sake of convenience and efficiency, a Rider in such a sport may delegate the filing of their whereabouts to their team not only in respect of periods of Team Activities but also in respect of periods where they are not with the team, provided the team agrees. In such circumstances, the Rider will need to provide the information as to their individual whereabouts for the period in question to the team, to supplement the information it provides in relation to Team Activities.]

4.8.14.5 In all cases:

- a) Each *Rider* remains ultimately responsible at all times for filing accurate and complete whereabouts and for being available for Testing at the times and locations specified in their whereabouts, whether they make each filing personally or delegate the task to a third party. When a *Rider* is subject to whereabouts requirements, whether included in the *UCI Registered Testing Pool* or *UCI Testing Pool*, the *Rider* cannot use as a defense to avoid applicable *Consequences*, that they delegated such responsibility to a third party and the third party failed to comply with the applicable whereabouts requirements;
- b) For *Riders in the UCI Registered Testing Pool*, it shall not be a defence to an allegation of a Filing Failure or Missed Test that the *Rider* delegated responsibility for filing their whereabouts information for the relevant period to a third party and that third party failed to file the correct information or failed to update previously-filed information so as to

ensure that the whereabouts information in the Whereabouts Filing for the day in question was current and accurate.

[Comment to 4.8.14.5: For example, if an attempt to test a Rider in the UCI Registered Testing Pool during a 60-minute time slot is unsuccessful due to a third party filing the wrong information, or failing to update previously-filed information where the details have subsequently changed, the Rider will still be liable for a Whereabouts Failure. This must be the case because if a Rider is able to blame their third party for being unavailable or inaccessible for Testing at a location specified by their third party, then they will be able to avoid accountability for their whereabouts for Testing. Of course, the third party has the same interest as the Rider in ensuring the accuracy of the Whereabouts Filing and avoiding any Whereabouts Failures on the part of the Rider. If the third party is a team official filing the wrong information in relation to the Team Activity or failing to update previously filed information where the details of the Team Activity have subsequently changed, then the team may be separately liable for sanction under the applicable rules of the International Federation or National Anti-Doping Organization for such failure. If the Rider/s is/are in a Testing pool, then the Rider/s will be subject to the applicable consequences under the rules of the International Federation or National Anti-Doping Organization.]

4.9 Coordinating with Other Anti-Doping Organizations

4.9.1 The UCI shall coordinate its *Testing* efforts with the efforts of other *Anti-Doping Organizations* with overlapping Testing Authority, in order to maximize the effectiveness of those combined efforts, to avoid unnecessarily repetitive *Testing* of particular *Riders* and to ensure *Riders* competing at *International Events* are suitably tested in advance. In particular the UCI shall:

- a) Consult with other relevant *Anti-Doping Organizations* in order to coordinate *Testing* activities (including *Rider* whereabouts pool selection and Test Distribution Plans, which may include *Out-of-Competition Testing* in the lead up to a major *Event*) and to avoid duplication. Clear agreement on roles and responsibilities for *Event Testing* shall be agreed in advance in accordance with UCI ADR Article 5.3. Where such agreement is not possible, WADA will resolve the matter in accordance with the principles set out at Annex H – *Event Testing*;
- b) Within twenty-one (21) days of *Sample* collection, enter the *Doping Control* form into ADAMS for all *Samples* collected;
- c) Share information on whereabouts requirements on *Riders* where there is overlapping Testing Authority via ADAMS;
- d) Share information on *Athlete Biological Passport* programs where there is overlapping Testing Authority via ADAMS; and
- e) Share intelligence on *Riders* where there is overlapping Testing Authority.

4.9.2 The UCI may contract other *Anti-Doping Organizations* or *Delegated Third Parties* to act as a Doping Control Coordinator or Sample Collection Authority on its behalf. In the terms of the contract, the UCI (which, for these purposes, is the Testing Authority) may specify how any discretion afforded to a Sample Collection Authority under the UCI *Testing & Investigations Regulations* is to be exercised by the Sample Collection Authority when collecting *Samples* on its behalf.

[Comment to 4.9.2: For example, the UCI Testing and Investigations Regulations confers discretion as to the criteria to be used to validate the identity of the Rider (Article 5.3.4), as to the circumstances in which delayed reporting to the Doping Control Station may be permitted (Article 5.5.2), as to who may be present during the Sample Collection Session (Article 6.3.3), as to the criteria to be used to ensure that each Sample collected is stored in a manner that protects its integrity, identity and security prior to transport from the Doping Control Station (Article 8.3.1), and as to the guidelines to be followed by the DCO in determining whether exceptional circumstances exist that mean a Sample Collection Session should be abandoned without collecting a Sample with a Suitable Specific Gravity for Analysis (Article F.4.5) and share information/intelligence obtained (Article 11).]

- 4.9.3** *Anti-Doping Organizations* should consult and coordinate with each other, with WADA, and with law enforcement and other relevant authorities, in obtaining, developing and sharing information and intelligence that can be useful in informing Test distribution planning, in accordance with Article 11.

5.0 Notification of *Riders*

5.1 Objective

The objective is to ensure that a *Rider* who has been selected for *Testing* is properly notified with no advance notice of *Sample* collection as outlined in Articles 5.3.1 and 5.4.1, that the rights of the *Rider* are maintained, that there are no opportunities to manipulate the *Sample* to be provided, and that the notification is documented.

5.2 General

Notification of *Riders* starts when the Sample Collection Authority initiates the notification of the selected *Rider* and ends when the *Rider* arrives at the Doping Control Station or when the *Rider's* possible Failure to Comply occurs. The main activities are:

- a) Appointment of DCOs, Chaperones and other Sample Collection Personnel sufficient to ensure No Advance Notice Testing and continuous observation of *Riders* notified of their selection to provide a *Sample*;
- b) Locating the *Rider* and confirming their identity;
- c) Informing the *Rider* that they have been selected to provide a *Sample* and of their rights and responsibilities;
- d) Continuously chaperoning the *Rider* from the time of notification to the arrival at the designated Doping Control Station; and
- e) Documenting the notification, or notification attempt.

5.3 Requirements Prior to Notification of *Riders*

- 5.3.1** No Advance Notice Testing shall be the method for *Sample* collection save in exceptional and justifiable circumstances.

The *Rider* shall be the first *Person* notified that they have been selected for *Sample* collection, except where prior contact with a third party is required as specified in Article 5.3.7.

[Comment to 5.3.1: Every effort should be made to ensure Event Venue or training venue staff are not aware that Testing may take place in advance. It is not justifiable for a National Federation or other body to insist that it be given advance notice of Testing of Riders under its authority so that it can have a representative present at such Testing.]

- 5.3.2** To conduct or assist with the Sample Collection Sessions, the Sample Collection Authority shall appoint and authorize Sample Collection Personnel who have been trained for their assigned responsibilities, who do not have a conflict of interest in the outcome of the *Sample* collection, and who are not *Minors*.
- 5.3.3** Sample Collection Personnel shall have official documentation, provided by the Sample Collection Authority, evidencing their authority to collect a *Sample* from the *Rider*, such as an authorization letter from the Testing Authority. DCOs shall also carry complementary identification which includes their name and photograph (i.e. identification card from the Sample Collection Authority, driver's license, health card, passport or similar valid identification) and the expiry date of the identification.
- 5.3.4** The Testing Authority or otherwise the Sample Collection Authority shall establish criteria to validate the identity of a *Rider* selected to provide a *Sample*. This ensures the selected *Rider* is the *Rider* who is notified. If the *Rider* is not readily identifiable, a third party may be asked to identify him/her and the details of such identification documented.
- 5.3.5** The Sample Collection Authority, DCO or Chaperone, as applicable, shall establish the location of the selected *Rider* and plan the approach and timing of notification, taking into consideration the specific circumstances and the situation in question.
- 5.3.6** The Sample Collection Authority, DCO or Chaperone, as applicable, shall document *Rider* notification attempt(s) and outcome(s).
- 5.3.7** The Sample Collection Authority, DCO or Chaperone, as applicable, shall consider whether a third party is required to be notified prior to notification of the *Rider*; in the following situations:
- a) Where required by a *Rider's* impairment (as provided for in Annex A - Modifications for *Riders* with Impairments);
 - b) Where the *Rider* is a *Minor* (as provided for in Annex B – Modifications for *Riders* who are *Minors*);
 - c) Where an interpreter is required and available for the notification;
 - d) Where required to assist Sample Collection Personnel to identify the *Rider(s)* to be tested and to notify such *Rider(s)* that they are required to provide a *Sample*.

[Comment to 5.3.7: It is permissible to notify a third party that Testing of Minors or Riders with impairments will be conducted. However, there is no requirement to notify any third party (e.g., a team doctor) of the Doping Control mission where such assistance is not needed. Should a third party be required to be notified prior to notification, the third party should be accompanied by the DCO or Chaperone to notify the Rider.]

5.4 Requirements for Notification of Riders

5.4.1 When initial contact is made, the Sample Collection Authority, DCO or Chaperone, as applicable, shall ensure that the *Rider* and/or a third party (if required in accordance with Article 5.3.7) is informed:

- a) That the *Rider* is required to undergo a *Sample* collection;
- b) Of the authority under which the *Sample* collection is to be conducted;
- c) Of the type of *Sample* collection and any conditions that need to be adhered to prior to the *Sample* collection;
- d) Of the *Rider's* rights, including the right to:
 - (i) Have a representative and, if available, an interpreter accompany them, in accordance with Article 6.4.3(a);
 - (ii) Ask for additional information about the *Sample* collection process;
 - (iii) Request a delay in reporting to the Doping Control Station for valid reasons in accordance with Article 5.4.4; and
 - (iv) Request modifications as provided for in Annex A – Modifications for *Riders* with Impairments.
- e) Of the *Rider's* responsibilities, including the requirement to:
 - (i) Remain within continuous observation of the DCO/Chaperone at all times from the point initial contact is made by the DCO/Chaperone until the completion of the *Sample* collection procedure;
 - (ii) Produce identification in accordance with Article 5.3.4;
 - (iii) Comply with *Sample* collection procedures (and the *Rider* should be advised of the possible *Consequences* of a Failure to Comply); and
 - (iv) Report immediately for *Sample* collection, unless there are valid reasons for a delay, as determined in accordance with Article 5.4.4.
- f) Of the location of the Doping Control Station;
- g) That should the *Rider* choose to consume food or fluids prior to providing a *Sample*, they do so at their own risk;

- h) Not to hydrate excessively, since this may delay the production of a suitable *Sample*; and
- i) That any urine *Sample* provided by the *Rider* to the Sample Collection Personnel shall be the first urine passed by the *Rider* subsequent to notification.

5.4.2 When contact is made, the DCO/Chaperone shall:

- a) From the time of such contact until the *Rider* leaves the Doping Control Station at the end of their Sample Collection Session, keep the *Rider* under observation at all times;
- b) Identify themselves to the *Rider* using the documentation referred to in Article 5.3.3; and
- c) Confirm the *Rider's* identity as per the criteria established in Article 5.3.4. Confirmation of the *Rider's* identity by any other method, or failure to confirm the identity of the *Rider*, shall be documented and reported to the Testing Authority.

*[Comment to Article 5.4.2 (c): The DCO may ask to provide further identification in due time, including after the *Sample* collection. The *Rider* shall comply with the DCO's instructions to that effect.]*

In cases where the *Rider's* identity cannot be confirmed as per the criteria established in Article 5.3.4, the Testing Authority shall decide whether it is appropriate to follow up in accordance with Annex A – Review of a Possible Failure to Comply of the *UCI Results Management Regulations*.

5.4.3 The DCO/Chaperone shall have the *Rider* sign an appropriate form to acknowledge and accept the notification. If the *Rider* refuses to sign that they have been notified, or evades the notification, the DCO/Chaperone shall, if possible, inform the *Rider* or his/her support personnel of the *Consequences* of a Failure to Comply, and the Chaperone (if not the DCO) shall immediately report all relevant facts to the DCO. When possible, the DCO shall continue to collect a *Sample*. The DCO shall document the facts in a detailed report and report the circumstances to the Testing Authority. The Testing Authority shall follow the steps prescribed in Annex A - Review of a Possible Failure to Comply of the *UCI Results Management Regulations*.

[Comment to Article 5.4.3: A notification form in electronic format is deemed valid and sufficient proof of notification and acceptance. It produces the same effects as a paper document.]

5.4.4 The DCO/Chaperone may at their discretion consider any reasonable third-party request or any request by the *Rider* for permission to delay reporting to the Doping Control Station following acknowledgment and acceptance of notification, and/or to leave the Doping Control Station temporarily after arrival. The DCO/Chaperone may grant such permission if the *Rider* can be continuously chaperoned and kept under continuous observation during the delay. Delayed reporting to or temporary departure from the Doping Control Station may be permitted for the following activities:

- a) For *In-Competition Testing*:

- (i) Participation in a presentation ceremony;
 - (ii) Fulfilment of media commitments;
 - (iii) Competing in further *Competitions*;
 - (iv) Performing a warm down;
 - (v) Obtaining necessary medical treatment;
 - (vi) Locating a representative and/or interpreter;
 - (vii) Obtaining photo identification; or
 - (viii) Any other reasonable circumstances, as determined by the DCO, taking into account any instructions of the Testing Authority.
- b) For *Out-of-Competition Testing*:
- (i) Locating a representative;
 - (ii) Completing a training session;
 - (iii) Receiving necessary medical treatment;
 - (iv) Obtaining photo identification; or
 - (v) Any other reasonable circumstances, as determined by the DCO, taking into account any instructions of the Testing Authority.
- 5.4.5** A DCO/Chaperone shall reject a request for delay from a Rider if it will not be possible for the Rider to be continuously observed during such delay.
- 5.4.6** The DCO/Chaperone or other authorized Sample Collection Personnel shall document any reasons for delay in reporting to the Doping Control Station and/or reasons for leaving the Doping Control Station that may require further investigation by the Testing Authority.
- 5.4.7** If the Rider delays reporting to the Doping Control Station other than in accordance with Article 5.4.4 and/or any failure of the Rider to remain under constant observation during chaperoning but the Rider arrives at the Doping Control Station prior to the DCO's departure from the sample collection location, the DCO shall report a possible Failure to Comply. If at all possible, the DCO shall proceed with collecting a Sample from the Rider. The Testing Authority shall investigate a possible Failure to Comply in accordance with Annex A – Review of a Possible Failure to Comply in the UCI Results Management Regulations.
- 5.4.8** If Sample Collection Personnel observe any other matter with potential to compromise the collection of the *Sample*, the circumstances shall be reported to and documented by the DCO. If deemed appropriate by the DCO, the DCO shall consider if it is

appropriate to collect an additional Sample from the *Rider*. The Testing Authority shall investigate a possible Failure to Comply in accordance with Annex A – Review of a Possible Failure to Comply in the *UCI Results Management Regulations*.

[Comment to Article 5.4.6, 5.4.7 and 5.4.8: Where applicable, the DCO shall offer the Rider the opportunity to provide comments and explanation on the relevant matter.]

6.0 Preparing for the Sample Collection Session

6.1 Objective

To prepare for the Sample Collection Session in a manner that ensures that the session can be conducted efficiently and effectively, including with sufficient resources e.g., personnel and equipment.

6.2 General

Preparing for the Sample Collection Session starts with the establishment of a system for obtaining relevant information for effective conduct of the session and ends when it is confirmed that the Sample Collection Equipment conforms to the specified criteria. The main activities are:

- a) Establishing a system for collecting details regarding the Sample Collection Session;
- b) Establishing criteria for who may be present during a Sample Collection Session;
- c) Ensuring that the Doping Control Station meets the minimum criteria prescribed in Article 6.3.2; and
- d) Ensuring that the Sample Collection Equipment meets the minimum criteria prescribed in Article 6.3.4.

6.3 Event Testing

6.3.1 The Sample Collection Authority shall appoint and authorise Sample Collection Personnel to conduct or assist with Sample Collection Sessions who have been trained for their assigned responsibilities, who do not have a conflict of interest in the outcome of the *Sample* collection, and who are not *Minors*.

6.3.2 At *UCI International Events* within the meaning of *UCI ADR 5.3.2*:

6.3.2.1 The *UCI* shall appoint and authorise the DCO in accordance with Article 6.3.1.

6.3.2.2 The organizer shall appoint and authorise the Chaperones and witnesses to assist with Sample Collection Sessions in accordance with Article 6.3.1. The organizer shall ensure the availability of witnesses of the same gender as the *Riders* who are expected to be called for urine *Sample* collection. The race medical staff shall not be appointed as witnesses for urine *Sample* collection.

- 6.3.2.3** The organizer is required to provide at least one Chaperone for every *Rider* selected to undergo *Testing*. Whenever applicable, the Chaperones shall be of the same gender as the *Riders*.
- 6.3.2.4** If necessary, the DCO may appoint supplementary Sample Collection Personnel on-site or the DCO may conduct the *Testing* alone, provided he/she appoints, where applicable, a witness of the same gender as the *Rider*.
- 6.3.2.5** The DCO shall have official documentation, provided by the *UCI*, evidencing his/her authority to collect a *Sample* from the *Rider*, such as an authorisation letter from the *UCI*. DCOs shall also carry complementary identification which includes their name and photograph (i.e., identification card from the *UCI*, driver's licence, health card, passport or similar valid identification) and the expiry date of the identification.
- 6.3.2.6** The organizer shall provide official documentation to all *Sample Collection Personnel*.
- [Comment to 6.3.2.6: With respect to Sample Collection Personnel other than the DCO, accreditation from the organizer is deemed sufficient evidence of authority to partake in the Sample Collection Session.]*
- 6.3.2.7** The organizer has the overall responsibility for the logistic and practical aspects of the organization of the *Testing* at the *Event*. The organizer must ensure that all Sample Collection Personnel other than those appointed by the *UCI* and all infrastructure and equipment are available so that *Testing* can be carried out in accordance with the *UCI* ADR and the *UCI Testing* and Investigations Regulations.
- 6.3.2.8** The National Federation of the organizer must assist the organizer to carry out the logistic and practical aspects of *Testing*, if needed. The National Federation remains ultimately responsible for the overall organization of the practical aspects thereof. In case of negligence in the logistic and practical organization of the *Testing*, the National Federation and the organizer shall be jointly and severally sanctioned with a fine of up to CHF 10'000. For multi-day *Events*, the fine may be increased by the number of days for which the negligence persists. If, as a result of organizer's negligence, the DCO appointed by the *UCI* is unable to carry out his mission properly, the National Federation and the organizer shall be jointly and severally liable to refund his expenses.
- 6.3.2.9** For time trial at the *UCI* World Championships, a Hot Seat must be available to accommodate the current lead team or the three current lead *Riders*. At other *Events*, a Hot Seat must be made available to accommodate the current leading *Rider* or team.

6.4 Requirements for Preparing for Sample Collection Session

- 6.4.1** The Testing Authority, Doping Control Coordinator or Sample Collection Authority shall establish a system for obtaining all the information necessary to ensure that the Sample Collection Session can be conducted effectively, including identifying special

requirements to meet the needs of *Riders* with impairments (as provided in Annex A - Modifications for *Riders* with Impairments) as well as the needs of *Riders* who are *Minors* (as provided in Annex B – Modifications for *Riders* who are *Minors*).

6.4.2 The DCO shall use a Doping Control Station which, at a minimum, ensures the *Rider's* privacy and where possible is used solely as a Doping Control Station for the duration of the Sample Collection Session. The DCO shall record any significant deviations from these criteria. Should the DCO determine the Doping Control Station is unsuitable, they shall seek an alternative location which fulfils the minimum criteria above.

6.4.3 The Testing Authority or Sample Collection Authority shall establish criteria for who may be authorized to be present during the Sample Collection Session in addition to the Sample Collection Personnel. At a minimum, the criteria shall include:

- a) A *Rider's* entitlement to be accompanied by a representative and/or interpreter during the Sample Collection Session, except when the *Rider* is passing a urine *Sample*;
- b) The entitlement of a *Rider* with an impairment to be accompanied by a representative as provided for in Annex A - Modifications for *Riders* with Impairments;
- c) A *Minor Rider's* entitlement (as provided for in Annex B - Modifications for *Riders* who are *Minors*), and the witnessing DCO/Chaperone's entitlement to have a representative observe the witnessing DCO/Chaperone when the *Minor Rider* is passing a urine *Sample*, but without the representative directly observing the passing of the *Sample* unless requested to do so by the *Minor Rider*;
- d) A WADA-appointed observer under the *WADA Independent Observer Program* or WADA auditor (where applicable); and/or
- e) An authorized *Person* who is involved in the training of Sample Collection Personnel or auditing the Sample Collection Authority.

[Comment to 6.4.3 (d) and (e): The WADA observer/auditor and/or authorized Person shall not directly observe the passing of a urine Sample]

6.4.4 The Sample Collection Authority shall only use Sample Collection Equipment systems for urine and blood *Samples* which, at a minimum:

- a) Have a unique numbering system, incorporated into all A and B bottles, containers, tubes or other items used to seal the *Sample* and have a barcode or similar data code which meets the requirements of ADAMS on the applicable Sample Collection Equipment;
- b) Have a Tamper-Evident sealing system;
- c) Ensure the identity of the *Rider* is not evident from the equipment itself;

- d) Ensure that all equipment is clean and sealed prior to use by the *Rider*;
- e) Are constructed of a material and sealing system that is able to withstand the handling conditions and environment in which the equipment will be used or subjected to, including but not limited to transportation, Laboratory analysis and long term frozen storage up to the period of the statute of limitations;
- f) Are constructed of a material and sealing system that will:
 - (i) Maintain the integrity (chemical and physical properties) of the *Sample* for the Analytical Testing;
 - (ii) Can withstand temperatures of -80°C for urine and blood and -20°C for dried blood spots. Tests conducted to determine integrity under freezing conditions shall use the matrix or material that will be stored in the *Sample* bottles, containers or tubes i.e., urine, blood, or capillary blood applied on a dried blood spot absorbent *Sample* support (e.g., dried blood spot cellulose card or other equipment made of another material);
 - (iii) Are constructed of a material and sealing system that can withstand a minimum of three (3) freeze/thaw cycles;
- g) The A and B bottles, containers and tubes shall be transparent, so the *Sample* is visible;
- h) Have a sealing system which allows verification by the *Rider* and the DCO that the *Sample* is correctly sealed in the A and B bottles or containers;
- i) Have a built-in security identification feature(s) which allows verification of the authenticity of the equipment;
- j) Are compliant with the standards published by the International Air Transport Association (IATA) for the transport of exempt human specimens which includes urine and/or blood *Samples* in order to prevent leakage during transportation by air or are compliant with the local and international regulations for the transport of dried blood spot *Samples*, if applicable;
- k) Comply with local regulatory requirements for medical devices (for blood and dried blood spot *Samples*) where necessary, as well as any other applicable law or regulation;
- l) Have been manufactured under the internationally recognized ISO 9001 certified standard which includes quality control management systems;
- m) Can be resealed after initial opening by a Laboratory using a new unique Tamper-Evident sealing system with a unique numbering system to maintain the integrity of the *Sample* and Chain of Custody in accordance with the requirements of the *International Standard* for Laboratories for long term storage of the *Sample* and Further Analysis;

- n) Have undergone testing by a testing institution that is independent of the manufacturer and is ISO 17025 accredited, to validate at a minimum that the equipment meets the criteria set out in subsections b), f), g), h), i), j) and m) above; and
- o) Any modification to the material or sealing system of the equipment shall require re-testing to ensure it continues to meet the stated requirements as per n) above;

For Urine Sample Collection:

- p) Have the capacity to contain a minimum of 85 mL volume of urine in each A and B bottle or container;
- q) Have a visual marking on the A and B bottles or containers and the collection vessel, indicating:
 - (i) the minimum volume of urine required in each A and B bottle or container as outlined in Annex C – Collection of Urine Samples;
 - (ii) the maximum volume levels that allow for expansion when frozen without compromising the bottle, container or the sealing system; and
 - (iii) the level of Suitable Volume of Urine for Analysis on the collection vessel.
- r) Include a partial Sample Tamper Evident sealing system with a unique numbering system to temporarily seal a *Sample* with an insufficient volume in accordance with Annex E – Urine Samples – Insufficient Volume;

For Venous Blood Sample Collection:

- s) Have the ability to collect, store and transport blood in separate A and B tubes and containers;
- t) For the analysis of *Prohibited Substances* or *Prohibited Methods* in whole blood or plasma and/or for profiling blood parameters, the A and B tubes must have the capacity to contain a minimum of 3mL of blood and shall contain EDTA as an anti-coagulant;
- u) For the analysis of *Prohibited Substances* or *Prohibited Methods* in serum, the A and B tubes must have the capacity to contain a minimum of 5mL of blood and shall contain an inert polymeric serum separator gel and clotting activation factor; and

[Comment to 6.4.4 (t) and (u): If specific tubes have been indicated in the applicable WADA International Standard, Technical Document or Guidelines, then the use of alternative tubes which meet similar criteria shall be validated with the involvement of the relevant Laboratory(ies) and approved by WADA prior to use for Sample collection.]

- v) For the transport of blood *Samples*, ensure the storage and transport device and temperature data logger meet the requirements listed in Annex I – Collection, Storage and Transport of Blood *Athlete Biological Passport Samples*.

For Dried Blood Spot Sample Collection:

- w) A dried blood spot absorbent Sample support (e.g., dried blood spot cellulose card) shall also be labelled if it is necessary to remove it from its container at the Laboratory to take an aliquot; and
- x) Allow the collection, storage and secure transportation of dried blood spots on absorbent Sample support that can be sealed as distinct “A” and “B” Samples (Tamper Evident kit consisting of “A” and “B” containers/sub-containers and/or storage sleeves/packages/receptacles).

[Comment to 6.3.4 (x): Due to logistical reasons at the Laboratory, it is recommended to seal the “A” and “B” Samples in separate containers. Transporting and/or storing “A” and “B” Samples in the same container is however acceptable, provided that they are sealed as distinct “A” and “B” Samples.]

[Comment to 6.3.4: It is strongly recommended that prior to the equipment being made commercially available to stakeholders, such equipment be distributed to the anti-doping community, which may include Riders, Testing Authorities, Sample Collection Authorities, Sample Collection Personnel, and Laboratories to seek feedback and ensure the equipment is fit for purpose.]

7.0 Conducting the Sample Collection Session

7.1 Objective

To conduct the Sample Collection Session in a manner that ensures the integrity, identity and security of the Sample and respects the privacy and dignity of the Rider.

7.2 General

The Sample Collection Session starts with defining overall responsibility for the conduct of the Sample Collection Session and ends once the Sample has been collected and secured and the Sample collection documentation is complete. The main activities are:

- a) Preparing for collecting the Sample;
- b) Collecting and securing the Sample; and
- c) Documenting the Sample collection.

7.3 Requirements Prior to Sample Collection

7.3.1 The Sample Collection Authority shall be responsible for the overall conduct of the Sample Collection Session, with specific responsibilities delegated to the DCO.

7.3.2 The DCO shall ensure that the Rider has been informed of their rights and responsibilities as specified in Article 5.4.1.

7.3.3 The DCO/Chaperone shall advise the Rider not to hydrate excessively, having in mind the requirement to provide a Sample with a Suitable Specific Gravity for Analysis.

- 7.3.4** The *Anti-Doping Organization* shall establish criteria regarding what items may be prohibited within the Doping Control Station. At a minimum these criteria shall prohibit the provision of alcohol or its consumption within the Doping Control Station.
- 7.3.5** The *Rider* shall only leave the Doping Control Station under continuous observation by the DCO or Chaperone and with the approval of the DCO. The DCO shall consider any reasonable request by the *Rider* to leave the Doping Control Station, as specified in Articles 5.4.4, 5.4.5 and 5.4.6, until the *Rider* is able to provide a *Sample*.
- 7.3.6** If the DCO gives approval for the *Rider* to leave the Doping Control Station, the DCO shall agree with the *Rider* on the following conditions of leave:
- a) The purpose of the *Rider* leaving the Doping Control Station; the time of return (or return upon completion of an agreed activity);
 - b) That the *Rider* must remain under continuous observation throughout;
 - c) That the *Rider* shall not pass urine until they arrive back at the Doping Control Station; and
 - d) The DCO shall document the time of the *Rider's* departure and return.

7.4 Requirements for Sample Collection

- 7.4.1** The DCO shall collect the *Sample* from the *Rider* according to the following protocol(s) for the specific type of *Sample* collection:
- a) Annex C - Collection of Urine *Samples*;
 - b) Annex D - Collection of Venous Blood *Samples*;
 - c) Annex I - Collection, Storage and Transport of Blood *Athlete Biological Passport Samples*;
 - d) Annex J - Collection, Storage and Transport of Dried Blood Spot *Samples*; and
 - e) Annex K – Collection of Urine *Samples* in a Virtual Environment during a Pandemic.
- 7.4.2** Any behaviour by the *Rider* and/or *Persons* associated with the *Rider* or anomalies with potential to compromise the *Sample* collection shall be recorded in detail by the DCO. If appropriate, the Testing Authority shall apply Annex A - Review of a Possible Failure to Comply in the *International Standard for Results Management*.
- 7.4.3** If there are doubts as to the origin or authenticity of the *Sample*, the *Rider* shall be asked to provide an additional *Sample*. If the *Rider* refuses to provide an additional *Sample*, the DCO shall document in detail the circumstances around the refusal, and the *UCI* shall apply Annex A - Review of a Possible Failure to Comply in accordance with the *UCI Results Management Regulations*.

- 7.4.4** The DCO shall provide the *Rider* with the opportunity to document any concerns they may have about how the Sample Collection Session was conducted.
- 7.4.5** The following information shall be recorded as a minimum in relation to the Sample Collection Session:
- a) Date, time of notification, name and signature of notifying DCO/Chaperone;
 - b) Arrival time of the *Rider* at the Doping Control Station and any temporary departures and returns;
 - c) Date and time of sealing of each *Sample* collected and date and time of completion of entire *Sample* collection process (i.e., the time when the *Rider* signs the declaration at the bottom of the *Doping Control* form);
 - d) The name of the *Rider*;
 - e) The date of birth of the *Rider*;
 - f) The sport gender of the *Rider*;
 - g) Means by which the *Rider's* identity is validated (e.g., passport, driver's license or *Rider* accreditation) including by a third party (who is so identified);
 - h) The *Rider's* home address, email address and telephone number;
 - i) The *Rider's* sport and discipline (in accordance with the TDSSA);
 - j) The name of the *Rider's* coach and doctor (if applicable);
 - k) The *Sample* code number and reference to the equipment manufacturer; and where the *Sample* collected is dried blood spot, detailed information on the model of the dried blood spot Sample Collection Equipment (e.g., catalogue number) if the equipment manufacturer commercializes several dried blood spot *Sample* collection kits;
 - l) The type of the *Sample* (urine, blood, dried blood spots etc.);
 - m) The type of *Testing* (*In-Competition* or *Out-of-Competition*);
 - n) The name and signature of the witnessing DCO/Chaperone;
 - o) The name and signature of the BCO (where applicable);
 - p) Partial *Sample* information, as per Annex E.4.4;
 - q) Required Laboratory information on the *Sample* (i.e., for a urine *Sample*, its volume and specific gravity measurement), as per Article 8.3.3;

- r) Medications and supplements taken within the previous seven (7) days and (where the *Sample* collected is a blood *Sample*) blood transfusions within the previous three (3) months, as declared by the *Rider*;
- s) For a blood *Athlete Biological Passport Sample*, the DCO/BCO shall record the information as outlined in Annex I - Collection, Storage and Transport of Blood *Athlete Biological Passport Samples*;
- t) Any irregularities in procedures, for example, if advance notice was provided;
- u) *Rider* comments or concerns regarding the conduct of the Sample Collection Session, as declared by the *Rider*;
- v) *Rider* acknowledgment of the Processing of *Sample* collection data and description of such Processing in accordance with the *International Standard* for the Protection of Privacy and Personal Information;
- w) *Rider* consent or otherwise for the use of the *Sample(s)* for research purposes;
- x) The name and signature of the *Rider's* representative (if applicable), as per Article 7.4.6;
- y) The name and signature of the *Rider*;
- z) The name and signature of the DCO;
- aa) The name of the Testing Authority;
- bb) The name of the Sample Collection Authority;
- cc) The name of the Results Management Authority; and
- dd) The name of the Doping Control Coordinator (if applicable).

[Comment to 7.4.5: All of the aforementioned information does not need to be consolidated in a single Doping Control form but rather may be collected during the Sample Collection Session and/or on other official documentation such as a separate notification form and/or supplementary report.]

7.4.6 At the conclusion of the Sample Collection Session, the *Rider* and DCO shall sign appropriate documentation to indicate their satisfaction that the documentation accurately reflects the details of the *Rider's* Sample Collection Session, including any concerns expressed by the *Rider*. The *Rider's* representative, if present and who witnessed the proceedings, should sign the documentation.

7.4.7 The *Rider* shall be offered a copy of the records of the Sample Collection Session that have been signed by the *Rider* whether electronically or otherwise.

8.0 Security/Post-Test Administration

8.1 Objective

To ensure that all *Samples* collected at the Doping Control Station and *Sample* collection documentation are securely stored prior to transport from the Doping Control Station.

8.2 General

Post-Test administration begins when the *Rider* has left the Doping Control Station after providing their *Sample(s)* and ends with preparation of all of the collected *Samples* and *Sample* collection documentation for transport.

8.3 Requirements for Security/Post-Test Administration

8.3.1 The Sample Collection Authority shall define criteria ensuring that each *Sample* collected is stored in a manner that protects its integrity, identity and security prior to transport from the Doping Control Station. At a minimum, these criteria should include detailing and documenting the location where *Samples* are stored and who has custody of the *Samples* and/or is permitted access to the *Samples*. The DCO shall ensure that any *Sample* is stored in accordance with these criteria.

8.3.2 The Sample Collection Authority shall develop a system for recording the Chain of Custody of the *Samples* and *Sample* collection documentation to ensure that the documentation for each *Sample* is completed and securely handled. This shall include confirming that both the *Samples* and *Sample* collection documentation have arrived at their intended destinations. The Laboratory shall report any irregularities to the Testing Authority on the condition of *Samples* upon arrival in line with the *International Standard* for Laboratories.

8.3.3 The Sample Collection Authority shall develop a system to ensure that, where required, instructions for the type of analysis to be conducted are provided to the Laboratory that will be conducting the analysis. In addition, the *Anti-Doping Organization* shall provide the Laboratory with information as required under Article 7.4.5 c), f), i), k), l), m), q), r), w), aa), bb) and cc) for result reporting and statistical purposes and include whether *Sample* retention in accordance with Article 4.7.3. is required.

[Comment to 8.3: Information as to how a Sample is stored prior to departure from the Doping Control Station may be recorded on, for example, a DCO report. The type of analysis for the Laboratory may be recorded on a Chain of Custody form. ADOs can refer to the WADA website for a DCO report and/or Chain of Custody form template.]

9.0 Transport of *Samples* and Documentation

9.1 Objective

a) To ensure that *Samples* and related documentation arrive at the Laboratory that will be conducting the analysis in proper condition to do the necessary analysis; and

- b) To ensure the Sample Collection Session documentation is sent by the DCO to the Testing Authority in a secure and timely manner.

9.2 General

- 9.2.1 Transport starts when the Samples and related documentation leave the Doping Control Station and ends with the confirmed receipt of the Samples and Sample Collection Session documentation at their intended destinations.
- 9.2.2 The main activities are arranging for the secure transport of Samples and related documentation to the Laboratory that will be conducting the analysis and arranging for the secure transport of the Sample Collection Session documentation to the Testing Authority.

9.3 Requirements for Transport and Storage of Samples and Documentation

- 9.3.1 The Sample Collection Authority shall authorize a transport system that ensures Samples and documentation are transported in a manner that protects their integrity, identity and security.
- 9.3.2 Samples shall always be transported to the Laboratory that will be analyzing the Samples using the Sample Collection Authority's authorized transport method, as soon as possible after the completion of the Sample Collection Session. Samples shall be transported in a manner which minimizes the potential for Sample degradation due to factors such as time delays and extreme temperature variations.
- [Comment to 9.3.2: Anti-Doping Organizations should discuss transportation requirements for particular missions (e.g., where the Sample has been collected in less than hygienic conditions, or where delays may occur in transporting the Samples to the Laboratory) with the Laboratory that will be analyzing the Samples, to establish what is necessary in the particular circumstances of such mission (e.g., refrigeration or freezing of the Samples).]*
- 9.3.3 Documentation identifying the Rider shall not be included with the Samples or documentation sent to the Laboratory that will be analyzing the Samples.
- 9.3.4 The DCO shall send all relevant Sample Collection Session documentation to the Sample Collection Authority, using the Sample Collection Authority's authorized transport method (which may include electronic transmission), as soon as practicable after the completion of the Sample Collection Session.
- 9.3.5 If the Samples with accompanying documentation or the Sample Collection Session documentation are not received at their respective intended destinations, or if a Sample's integrity, identity or security may have been compromised during transport, the Sample Collection Authority shall check the Chain of Custody, and the Testing Authority shall consider whether the Samples should be voided.
- 9.3.6 Documentation related to a Sample Collection Session and/or an anti-doping rule violation shall be stored by the Testing Authority and/or the Sample Collection Authority for the period and other requirements specified in the International Standard for the Protection of Privacy and Personal Information.

[Comment to 9.3: While the requirements for transport and storage of Samples and documentation herein apply equally to all urine, blood, blood Athlete Biological Passport and dried blood spot Samples, additional requirements for standard blood can be found in Annex D - Collection of Venous Blood Samples, additional requirements for the transportation of Blood Samples for the Athlete Biological Passport can be found in Annex I - Collection, Storage and Transport of Blood Rider Biological Passport Samples, and additional requirements for the transportation of dried blood spot Samples can be found in Annex J – Collection, Storage and Transport of Dried Blood Spot Samples.]

10.0 Ownership of Samples

- 10.1** Samples collected from a *Rider* are owned by the Testing Authority for the Sample Collection Session in question.
- 10.2** The Testing Authority may transfer ownership of the *Samples* to the Results Management Authority or to another *Anti-Doping Organization* upon request.
- 10.3** WADA may assume Testing Authority in certain circumstances in accordance with the *Code* and the *International Standard* for Laboratories.
- 10.4** Where the Testing Authority is not the Passport Custodian, the Testing Authority that initiated and directed the *Sample* collection maintains the responsibility for additional Analytical Testing of the *Sample*. This includes the performance of further Confirmation Procedure(s) upon requests generated automatically by the Adaptive Model of the *Athlete Biological Passport* in ADAMS (e.g., GC/C/IRMS triggered by elevated T/E) or a request by the APMU (e.g., GC/C/IRMS requested due to abnormal secondary *Markers* of the urinary “longitudinal steroid profile” or erythropoietin receptor agonists (ERAs) analysis tests due to suspicious hematological *Marker* values).

PART THREE: STANDARDS FOR INTELLIGENCE GATHERING AND INVESTIGATIONS

11.0 Gathering, Assessment and Use of Intelligence

11.1 Objective

The *UCI* shall ensure it is able to obtain, assess and process anti-doping intelligence from all available sources, to help deter and detect doping, to inform the development of an effective, intelligent and proportionate Test Distribution Plan, to plan *Target Testing*, and to conduct investigations as required by *UCI* ADR Article 5.7. The objective of Article 11 is to establish standards for the efficient and effective gathering, assessment and processing of such intelligence for these purposes.

[Comment to 11.1: While Testing will always remain an integral part of the anti-doping effort, Testing alone is not sufficient to detect and establish to the requisite standard all of the anti-doping rule violations identified in the UCI ADR. In particular, while Use of Prohibited Substances and Prohibited Methods may often be uncovered by analysis of Samples, the other UCI ADR anti-doping rule violations (and, often, Use) can usually only be effectively identified and pursued through the gathering and investigation of 'non-analytical' anti-doping intelligence and information. This means that Anti-Doping Organizations need to develop efficient and effective intelligence-gathering and investigation functions. WADA has devised Intelligence and Investigations Guidelines with case studies to assist Anti-Doping Organizations to better understand the types of 'non-analytical' intelligence that may be available and to provide support and guidance to Signatories in their efforts to comply with the Code and the International Standards.]

11.2 Gathering of Anti-Doping Intelligence

11.2.1 The *UCI* shall do everything in its power to ensure that it is able to capture or receive anti-doping intelligence from all available sources, including, but not limited to, *Riders* and *Rider Support Personnel* (including *Substantial Assistance* provided pursuant to *UCI* ADR Article 10.7.1) and members of the public (e.g., by means of a confidential telephone hotline), Sample Collection Personnel (whether via mission reports, incident reports, or otherwise), Laboratories, pharmaceutical companies, other *Anti-Doping Organizations*, WADA, National Federations, law enforcement, other regulatory and disciplinary bodies, and the media (in all its forms).

11.2.2 The *UCI* shall have policies and procedures in place to ensure that anti-doping intelligence captured or received is handled securely and confidentially, that sources of intelligence are protected, that the risk of leaks or inadvertent disclosure is properly addressed, and that intelligence shared with them by law enforcement, other relevant authorities and/or other third parties, is processed, used and disclosed only for legitimate anti-doping purposes.

11.3 Assessment and Analysis of Anti-Doping Intelligence

11.3.1 The *UCI* shall ensure that it is able to assess all anti-doping intelligence upon receipt for relevance, reliability and accuracy, taking into account the nature of the source and the circumstances in which the intelligence has been captured or received.

[Comment to 11.3.1: There are various models that may be used as the basis for the assessment and analysis of anti-doping intelligence. There are also databases and case management systems that may be used to assist in the organization, processing, analysis and cross-referencing of such intelligence.]

11.3.2 All anti-doping intelligence captured or received by the *UCI* should be collated and analyzed to establish patterns, trends and relationships that may assist the *UCI* in developing an effective anti-doping strategy and/or in determining (where the intelligence relates to a particular case) whether there is reasonable cause to suspect that an anti-doping rule violation may have been committed, such that further investigation is warranted in accordance with Article 12 and the *UCI Results Management Regulations*.

11.4 Intelligence Outcomes

11.4.1 Anti-doping intelligence shall be used to assist for the following purposes (without limitation): developing, reviewing and revising the Test Distribution Plan and/or determining when to conduct *Target Testing*, in each case in accordance with Article 4 and/or to create targeted intelligence files to be referred for investigation in accordance with Article 12.

11.4.2 The *UCI* should also develop and implement policies and procedures for the sharing of intelligence (where appropriate, and subject to applicable law) with other *Anti-Doping Organizations* (e.g., if the intelligence relates to *Riders* or other *Persons* under their authority) and/or law enforcement and/or other relevant regulatory or disciplinary authorities (e.g., if the intelligence suggests the possible commission of a crime or regulatory offence or breach of other rules of conduct).

11.4.3 The *UCI* should develop and implement policies and procedures to facilitate and encourage confidential sources as outlined within *WADA's Confidential Source Policy* available on *WADA's* website.

12.0 Investigations

12.1 Objective

The objective of Article 12 is to establish standards for the efficient and effective conduct of investigations that the *UCI* must implement under the *UCI ADR*, including but not limited to:

- a) The investigation of *Atypical Findings*, *Atypical Passport Findings* and *Adverse Passport Findings*, in accordance with the *UCI Results Management Regulations*;
- b) The investigation of any other analytical or non-analytical information and/or intelligence where there is reasonable cause to suspect that an anti-doping rule violation may have been committed, in accordance with the *UCI Results Management Regulations*;
- c) The investigation of the circumstances surrounding and/or arising from an *Adverse Analytical Finding* to gain further intelligence on other *Persons* or methods involved in doping (e.g., interviewing the relevant *Rider*); and

- d) Where an anti-doping rule violation by a *Rider* is established, the investigation into whether *Rider Support Personnel* or other *Persons* may have been involved in that violation, in accordance with *UCI ADR Article 21*.

12.1.1 In each case, the purpose of the investigation is to achieve one of the following either:

- a) to rule out the possible violation/involvement in a violation;
- b) to develop evidence that supports the initiation of an anti-doping rule violation proceeding in accordance with *UCI ADR Article 8*; or
- c) to provide evidence of a breach of the *UCI ADR*, *UCI Regulations* or applicable *International Standard*.

12.2 Investigating Possible Anti-Doping Rule Violations

12.2.1 The *UCI* shall ensure that they are able to investigate confidentially and effectively any analytical or non-analytical information or intelligence that indicates there is reasonable cause to suspect that an anti-doping rule violation may have been committed, in accordance with the *UCI Results Management Regulations*.

[Comment to 12.2.1: Where an attempt to collect a Sample from a Rider produces information indicating a possible evasion of Sample collection and/or refusal or failure to submit to Sample collection after due notification, in violation of UCI ADR Article 2.3, or possible Tampering or Attempted Tampering with Doping Control, in violation of UCI ADR Article 2.5, the matter shall be investigated in accordance with the UCI Results Management Regulations.]

12.2.2 The *UCI* shall gather and record all relevant information and documentation as soon as possible, in order to develop that information and documentation into admissible and reliable evidence in relation to the possible anti-doping rule violation, and/or to identify further lines of enquiry that may lead to the discovery of such evidence. The *UCI* shall ensure that investigations are conducted fairly, objectively and impartially at all times. The conduct of investigations, the evaluation of information and evidence identified in the course of that investigation, and the outcome of the investigation, shall be fully documented.

[Comment to 12.2.2: It is important that information is provided to and gathered by the investigating Anti-Doping Organization as quickly as possible and in as much detail as possible because the longer the period between the incident and investigation, the greater the risk that certain evidence may no longer exist. Investigations should not be conducted with a closed mind, pursuing only one outcome (e.g., institution of anti-doping rule violation proceedings against a Rider or other Person). Rather, the investigator(s) should be open to and should consider all possible outcomes at each keystone of the investigation, and should seek to gather not only any available evidence indicating that there is a case to answer but also any available evidence indicating that there is no case to answer.]

12.2.3 The *UCI* should make use of all investigative resources reasonably available to it to conduct its investigation. This may include obtaining information and assistance from law enforcement and other relevant authorities, including other regulators.

However, the *UCI* should also make full use of all investigative resources at its own disposal, including the *Athlete Biological Passport* program, investigative powers conferred under applicable rules (e.g., the power to demand the production of relevant documents and information, and the power to interview both potential witnesses and the *Rider* or other *Person* who is the subject of the investigation), and the power to suspend a period of *Ineligibility* imposed on a *Rider* or other *Person* in return for the provision of *Substantial Assistance* in accordance with *UCI ADR Article 10.7.1*.

- 12.2.4** *Riders* and *Rider Support Personnel* are required under *UCI ADR Article 21* to cooperate with investigations conducted by the *UCI*. If they fail to do so, disciplinary action should be taken against them under applicable rules. If their conduct amounts to subversion of the investigation process (e.g., by providing false, misleading or incomplete information, and/or by destroying potential evidence), the *UCI* should bring proceedings against them for violation of *UCI ADR Article 2.5 (Tampering or Attempted Tampering)*.

12.3 Investigation Outcomes

- 12.3.1** The *UCI* shall come to a decision efficiently and without undue delay as to whether proceedings should be brought against the *Rider* or other *Person* asserting commission of an anti-doping rule violation. As set out in *UCI ADR Article 13.3*, if the *UCI* fails to make such decision within a reasonable deadline set by *WADA*, *WADA* may elect to appeal directly to *CAS* as if the *UCI* had rendered a decision finding that no anti-doping rule violation has been committed. As noted in the comment to *UCI ADR Article 13.3*, however, before taking such action *WADA* will consult with the *UCI* and give it an opportunity to explain why it has not yet rendered a decision.
- 12.3.2** Where the *UCI* concludes based on the results of its investigation that proceedings should be brought against the *Rider* or other *Person* asserting commission of an anti-doping rule violation, it shall give notice of that decision in the manner set out in the *UCI Results Management Regulations* and shall bring forward the proceedings against the *Rider* or other *Person* in question in accordance with *UCI ADR Article 8*.
- 12.3.3** Where the *UCI* concludes, based on the results of its investigation, that proceedings should not be brought forward against the *Rider* or other *Person* asserting commission of an anti-doping rule violation:
- 12.3.3.1** It shall notify *WADA* and the *Rider's* or other *Person's National Anti-Doping Organization* in writing of that decision, with reasons, in accordance with *UCI ADR Article 14.2.4*.
 - 12.3.3.2** It shall provide such other information about the investigation as is reasonably required by *WADA* and/or *National Anti-Doping Organization* in order to determine whether to appeal against that decision.

12.3.3.3 In any event, it shall consider whether any of the intelligence obtained and/or lessons learned during the investigation should be used to inform the development of its Test Distribution Plan and/or to plan *Target Testing*, and/or should be shared with any other body in accordance with Article 11.4.2.

ANNEX A - MODIFICATIONS FOR *RIDERS* WITH IMPAIRMENTS

A.1. Objective

To ensure, where possible, that the particular needs of *Riders* with impairments are considered in relation to the provision of a *Sample* without compromising the integrity of the Sample Collection Session.

A.2. Scope

Determining whether modifications are necessary starts with identification of situations where *Sample* collection involves *Riders* with impairments and ends with modifications to *Sample* collection procedures and equipment where necessary and where possible.

A.3. Responsibility

A.3.1 The Testing Authority or Sample Collection Authority (as applicable) has responsibility for ensuring, when possible, that the DCO has any information and Sample Collection Equipment necessary to conduct a Sample Collection Session with an *Rider* with an impairment, including details of such impairment that may affect the procedure to be followed in conducting a Sample Collection Session.

A.3.2 The DCO has responsibility for *Sample* collection.

A.4. Requirements

A.4.1 All aspects of notification and *Sample* collection for *Riders* with impairments shall be carried out in accordance with the standard notification and *Sample* collection procedures unless modifications are necessary due to the *Rider's* impairment.

*[Comment to A.4.1: The Testing Authority in the case of a *Rider* with an intellectual impairment, shall decide whether to obtain consent to Testing from their representative and inform the Sample Collection Authority and Sample Collection Personnel.]*

A.4.2 In planning or arranging *Sample* collection, the Sample Collection Authority and DCO shall consider whether there will be any *Sample* collection for *Riders* with impairments that may require modifications to the standard procedures for notification or *Sample* collection, including Sample Collection Equipment and Doping Control Station.

A.4.3 The Sample Collection Authority and DCO shall have the authority to make modifications as the situation requires when possible and as long as such modifications will not compromise the integrity, identity, and security of the *Sample*. The DCO shall consult the *Rider* in order to determine what modifications may be necessary for the *Rider's* impairment. All such modifications shall be documented.

A.4.4 An *Rider* with an intellectual, physical or sensorial impairment may be assisted by the *Rider's* representative or Sample Collection Personnel during the Sample Collection Session where authorized by the *Rider* and agreed to by the DCO.

- A.4.5** The DCO may decide that alternative Sample Collection Equipment or an alternative Doping Control Station will be used when required to enable the *Rider* to provide the *Sample*, as long as the *Sample*'s integrity, identity and security will not be affected.
- A.4.6** *Riders* who are using urine collection or drainage systems are required to eliminate existing urine from such systems before providing a urine *Sample* for analysis. Where possible, the existing urine collection or drainage system should be replaced with a new, unused catheter or drainage system prior to collection of the *Sample*..
- A.4.7** Should a *Rider* require any additional equipment in order to be able to provide a *Sample*, including but not limited to catheters and drainage systems, it is the sole responsibility of the *Rider* to have the necessary equipment available for this purpose and understand how to use it.
- A.4.8** For *Riders* with vision or intellectual impairments, the DCO and/or *Rider* may determine if they shall have a representative present during the Sample Collection Session. During the Sample Collection Session, a representative of the *Rider* and/or a representative of the DCO may observe the witnessing DCO/Chaperone while the *Rider* is passing the urine *Sample*. This representative or these representatives may not directly observe the passing of the urine *Sample*, unless requested to do so by the *Rider*.
- A.4.9** The DCO shall record modifications made to the standard *Sample* collection procedures for *Riders* with impairments, including any applicable modifications specified in the above actions.

ANNEX B - MODIFICATIONS FOR *RIDERS WHO ARE MINORS*

B.1. Objective

To ensure, where possible, that the particular needs of *Riders* who are *Minors* are met in relation to the provision of a *Sample*, without compromising the integrity of the Sample Collection Session.

B.2. Scope

Determining whether modifications are necessary starts with identification of situations where *Sample* collection involves *Riders* who are *Minors* and ends with modifications to *Sample* collection procedures where necessary and where possible.

B.3. Responsibility

B.3.1 The Testing Authority has responsibility for ensuring, when possible, that the Sample Collection Authority and/or the DCO has any information necessary to conduct a Sample Collection Session with a *Rider* who is a *Minor*. This includes confirming wherever necessary that the necessary parental consent for *Testing* any participating *Rider* who is a *Minor*.

B.3.2 Where *Sample* collection involves a *Rider* who is a *Minor*, the Testing Authority and/or the Sample Collection Authority shall assign, at a minimum, two Sample Collection Personnel to the Sample Collection Session. Sample Collection Personnel shall be informed, in advance, that *Sample* collection involves (or may involve) *Riders* who are *Minors*.

*[Comment to B.3.2: For clarity, the two Sample Collection Personnel may be two DCOs or a DCO and a BCO or a DCO and a Chaperone. The two Sample Collection Personnel shall always be present in the Doping Control Station for Sample Collection Sessions involving a *Rider* who is a *Minor*.]*

B.3.3 The DCO has responsibility for *Sample* collection.

B.4. Requirements

B.4.1 All aspects of notification and *Sample* collection for *Riders* who are *Minors* shall be carried out in accordance with the standard notification and *Sample* collection procedures unless modifications are necessary due to the *Rider* being a *Minor*.

B.4.2 The Sample Collection Authority and the DCO shall have the authority to make modifications as the situation requires as long as such modifications will not compromise the integrity, identity and security of the *Sample*. All such modifications shall be documented.

B.4.3 *Riders* who are *Minors* should be notified in the presence of a *Rider* representative (who is not a *Minor*) and should also be accompanied by a representative throughout the entire Sample Collection Session.

*[Comment to B.4.3: It is recommended that a *Rider* who is a *Minor* be accompanied by a *Rider* representative. Reasonable efforts should be made by the Sample Collection Personnel to encourage the*

Rider who is a Minor to have a Rider representative throughout the Sample Collection Session and to assist the Rider in locating one. In situations where the Rider is unable to locate a representative then two Sample Collection Personnel shall always accompany the Rider until their Sample Collection Session is completed, however, if a Rider representative is located and present with the Rider, the second Sample Collection Personnel is not required to accompany the Rider with the exception of when the Rider is ready to provide a Sample in accordance with the procedures outlined in Annex B.4.5.]

- B.4.4** Should a *Rider* who is a *Minor* decline to have a representative present during the collection of a *Sample*, this does not invalidate the Test but shall be clearly documented by the DCO. Any follow up action taken by the DCO and/or Chaperone to encourage and assist the Rider in locating a representative should also be documented.
- B.4.5** The representative of the *Rider* who is a *Minor*, if present shall only observe the DCO/Chaperone during the passing of the urine *Sample*, unless requested by the *Rider* who is a *Minor* to observe the passing of the urine *Sample* directly. The second member of the Sample Collection Personnel shall only observe the DCO/Chaperone and shall not directly observe the passing of the *Sample*.
- B.4.6** The preferred venue for all *Out-of-Competition Testing* of the *Rider* who is a *Minor* is a location where the presence of a *Rider* representative (who is not a *Minor*) is most likely to be available for the duration of the Sample Collection Session, e.g., a training venue.

ANNEX C - COLLECTION OF URINE SAMPLES

C.1. Objective

To collect a *Rider's* urine *Sample* in a manner that ensures:

- a) Consistency with relevant principles of internationally recognized standard precautions in healthcare settings so that the health and safety of the *Rider* and Sample Collection Personnel are not compromised;
- b) The *Sample* meets the Suitable Specific Gravity for Analysis and the Suitable Volume of Urine for Analysis. Failure of a *Sample* to meet these requirements in no way invalidates the suitability of the *Sample* for analysis. The determination of a *Sample's* suitability for analysis is the decision of the relevant Laboratory, in consultation with the Testing Authority for the Sample Collection Session in question;

*[Comment to C.1. (b): The measurements taken in the field for Suitable Specific Gravity for Analysis and the Suitable Volume of Urine for Analysis are preliminary in nature, to assess whether the *Sample* meets the requirements for analysis. It is possible there could be discrepancies between the field readings and the final Laboratory readings due to the precision of the Laboratory equipment. The Laboratory reading will be considered final, and such discrepancies (if any) shall not constitute a basis for *Riders* to seek to invalidate or otherwise challenge an Adverse Analytical Finding.]*

- c) the *Sample* has not been manipulated, substituted, contaminated or otherwise tampered with in anyway;
- d) the *Sample* is clearly and accurately identified; and
- e) the *Sample* is securely sealed in a Tamper Evident kit.

C.2. Scope

The collection of a urine *Sample* begins with ensuring the *Rider* is informed of the *Sample* collection requirements and ends with discarding any residual urine remaining at the end of the *Rider's* Sample Collection Session.

C.3. Responsibility

- C.3.1** The DCO has the responsibility for ensuring that each *Sample* is properly collected, identified and sealed.
- C.3.2** The DCO/Chaperone has the responsibility for directly witnessing the passing of the urine *Sample*.

C.4. Requirements

- C.4.1** The DCO shall ensure that the *Rider* is informed of the requirements of the Sample Collection Session, including any modifications as provided for in Annex A – Modifications for *Riders* with Impairments and/or in Annex B – Modification for *Riders* who are *Minors*.

- C.4.2** The DCO shall ensure that the *Rider* is offered a choice of *Sample* collection vessels for collecting the *Sample*. If the nature of a *Rider's* impairment requires that they must use additional or other equipment as provided for in Annex A - Modifications for *Riders* with Impairments, the DCO shall inspect that equipment to ensure that it will not affect the integrity, identity or security of the *Sample*.
- C.4.3** When the *Rider* selects a collection vessel, and for selection of all other Sample Collection Equipment that directly holds the urine *Sample*, the DCO will instruct the *Rider* to check that all seals on the selected equipment are intact and the equipment has not been tampered with. If the *Rider* is not satisfied with the selected equipment, they may select another. If the *Rider* is not satisfied with any of the equipment available for selection, this shall be recorded by the DCO. If the DCO does not agree with the *Rider* that all of the equipment available for the selection is unsatisfactory, the DCO shall instruct the *Rider* to proceed with the Sample Collection Session. If the DCO agrees with the *Rider* that all of the equipment available for the selection is unsatisfactory, the DCO shall terminate the urine *Sample collection*, and this shall be recorded by the DCO.
- C.4.4** The *Rider* shall retain control of the collection vessel and any *Sample* provided until the *Sample* (or partial *Sample*) is sealed, unless assistance is required by reason of a *Rider's* impairment as provided for in Annex A - Modifications for *Riders* with Impairments. Additional assistance may be provided in exceptional circumstances to any *Rider* by the *Rider's* representative or Sample Collection Personnel during the Sample Collection Session where authorized by the *Rider* and agreed to by the DCO.
- C.4.5** The DCO/Chaperone who witnesses the passing of the *Sample* shall be of the same gender as the *Rider* providing the *Sample* and where applicable, based on the gender of the *Event* the *Rider* competed in.
- C.4.6** The DCO/Chaperone shall, where practicable, ensure the *Rider* thoroughly washes their hands with water only prior to the provision of the *Sample* or wears suitable (e.g., disposable) gloves during provision of the *Sample*.
- C.4.7** The DCO/Chaperone and *Rider* shall proceed to an area of privacy to collect a *Sample*.
- C.4.8** The DCO/Chaperone shall ensure an unobstructed view of the *Sample* leaving the *Rider's* body and shall continue to observe the *Sample* after provision until the *Sample* is securely sealed. In order to ensure a clear and unobstructed view of the passing of the *Sample*, the DCO/Chaperone shall instruct the *Rider* to remove or adjust any clothing which restricts the DCO's/Chaperone's clear view of *Sample* provision.
- C.4.9** The DCO/Chaperone shall ensure that urine passed by the *Rider* is collected in the collection vessel to its maximum capacity and thereafter the *Rider* is encouraged to fully empty their bladder into the toilet. The DCO shall verify, in full view of the *Rider*, that the Suitable Volume of Urine for Analysis has been provided.
- C.4.10** Where the volume of urine provided by the *Rider* is insufficient, the DCO shall follow the partial *Sample* collection procedure set out in Annex E - Urine *Samples* - Insufficient Volume.

- C.4.11** Once the volume of urine provided by the *Rider* is sufficient, the DCO shall instruct the *Rider* to select a *Sample* collection kit containing A and B bottles or containers in accordance with Annex C.4.3.
- C.4.12** Once a *Sample* collection kit has been selected, the DCO and the *Rider* shall check that all *Sample* code numbers match and that this code number is recorded accurately by the DCO on the *Doping Control* form. If the *Rider* or DCO finds that the numbers are not the same, the DCO shall instruct the *Rider* to choose another kit in accordance with Annex C.4.3. The DCO shall record the matter.
- C.4.13** The *Rider* shall pour the minimum Suitable Volume of Urine for Analysis into the B bottle or container (to a minimum of 30 mL), and then pour the remainder of the urine into the A bottle or container (to a minimum of 60 mL). The Suitable Volume of Urine for Analysis shall be viewed as an absolute minimum. If more than the minimum Suitable Volume of Urine for Analysis has been provided, the DCO shall ensure that the *Rider* fills the A bottle or container to capacity as per the recommendation of the equipment manufacturer. Should there still be urine remaining, the DCO shall ensure that the *Rider* fills the B bottle or container to capacity as per the recommendation of the equipment manufacturer. The DCO shall instruct the *Rider* to ensure that a small amount of urine is left in the collection vessel, explaining that this is to enable the DCO to test the residual urine in accordance with Annex C.4.15.
- C.4.14** The *Rider* shall then seal the A and B bottles or containers as directed by the DCO. The DCO shall check, in full view of the *Rider*, that the bottles or containers have been properly sealed.
- C.4.15** The DCO shall test the residual urine in the collection vessel to determine if the *Sample* has a Suitable Specific Gravity for Analysis. If the DCO's field reading indicates that the *Sample* does not have a Suitable Specific Gravity for Analysis, then the DCO shall follow Annex F - *Urine Samples* that do not meet the requirement for Suitable Specific Gravity for Analysis.
- C.4.16** Urine should only be discarded when both the A and B bottles or containers have been sealed and the residual urine has been tested in accordance with Annex C.4.15.
- C.4.17** The *Rider* shall be given the option of witnessing the discarding of any residual urine that will not be sent for analysis.

ANNEX D - COLLECTION OF VENOUS BLOOD SAMPLES

D.1. Objective

To collect a *Rider's* blood *Sample* by venipuncture in a manner that ensures:

- a) Consistency with relevant principles of internationally recognized standard precautions in healthcare settings, and is collected by a suitably qualified *Person*, so that the health and safety of the *Rider* and Sample Collection Personnel are not compromised;
- b) The *Sample* is of a quality and quantity that meets the relevant analytical guidelines and requirements defined by the Laboratory;
- c) The *Sample* has not been manipulated, substituted, contaminated or otherwise tampered with in any way;
- d) The *Sample* is clearly and accurately identified; and
- e) The *Sample* is securely sealed in a Tamper Evident kit.

D.2. Scope

The requirements of this Annex apply to venous blood *Samples* collected for the purposes of specific analysis and/or all modules of the *Athlete Biological Passport*. The collection of a venous blood *Sample* begins with ensuring the *Rider* is informed of the *Sample* collection requirements and ends with properly storing the *Sample* prior to transport to the Laboratory that will be analyzing the *Sample*.

[Comment to D.2.: Additional requirements applicable only to whole blood Samples collected for the hematological module of the Athlete Biological Passport are contained in Annex I - Collection, Storage and Transport of Blood Athlete Biological Passport Samples and, requirements for dried blood spot Samples are contained in Annex J - Collection, Storage and Transport of Dried Blood Spot Samples.]

D.3. Responsibility

D.3.1 The DCO has the responsibility for ensuring that:

- a) Each *Sample* is properly collected, identified and sealed; and
- b) All *Samples* have been properly stored and dispatched in accordance with the relevant analytical guidelines.

D.3.2 The BCO has the responsibility for collecting the blood *Sample*, answering related questions during the provision of the *Sample*, and proper disposal of used blood sampling equipment not required to complete the Sample Collection Session.

D.4. Requirements

- D.4.1** Procedures involving blood shall be consistent with the local standards and regulatory requirements regarding precautions in healthcare settings where those standards and requirements exceed the requirements set out below.
- D.4.2** Blood Sample Collection Equipment shall consist of:
- a) Collection tube(s); and/or
 - b) A and B bottles/containers for the secure transportation of collection tube(s); and/or
 - c) Unique labels for collection tube(s) with a *Sample* code number; and/or
 - d) Such other types of equipment to be used in connection with the collection of blood as set out in Article 6.3.4 and WADA's Guidelines for *Sample* Collection.
- D.4.3** The DCO shall ensure that the *Rider* is properly notified of the requirements of the *Sample* collection, including any modifications as provided for in Annex A - Modifications for *Riders with Impairments*.
- D.4.4** The DCO/Chaperone and *Rider* shall proceed to the area where the *Sample* will be provided.
- D.4.5** The DCO/BCO shall ensure the *Rider* is offered comfortable conditions and shall instruct the *Rider* to remain in an upright, stationary seated position with feet on the floor for at least 10 minutes prior to providing a blood *Sample*. If the *Rider's* feet cannot reach the floor and/or the *Rider's* impairment does not allow feet on the floor, the *Rider* shall remain in an upright, stationary seated position.
- D.4.6** The DCO/BCO shall instruct the *Rider* to select the Sample Collection Equipment required for collecting the *Sample* and to check that the selected equipment has not been tampered with and any seals are intact. If the *Rider* is not satisfied with the selected equipment, they may select another. If the *Rider* is not satisfied with any equipment and no other is available, this shall be recorded by the DCO. If the DCO does not agree with the *Rider* that all of the available equipment is unsatisfactory, the DCO shall instruct the *Rider* to proceed with the Sample Collection Session. If the DCO agrees with the *Rider* that all available equipment is unsatisfactory, the DCO shall terminate the blood *Sample* collection, and this shall be recorded by the DCO.
- D.4.7** When a *Sample* collection kit has been selected, the DCO and the *Rider* shall check that all *Sample* code numbers match and that this *Sample* code number is recorded accurately by the DCO on the *Doping Control* form. If the *Rider* or DCO finds that the numbers are not the same, the DCO shall instruct the *Rider* to choose another kit. The DCO shall record the matter. If the collection tube(s) are not pre-labelled, the DCO/BCO shall label them with a unique *Sample* code number prior to the blood being drawn and the *Rider* shall check that the code numbers match.
- D.4.8** The BCO shall assess the most suitable location for venipuncture that is unlikely to adversely affect the *Rider* or their performance. This should be the non-dominant arm,

unless the BCO assesses the other arm to be more suitable. The BCO shall clean the skin with a sterile disinfectant wipe or swab and, if required apply a tourniquet. The BCO shall take the blood *Sample* from a superficial vein into the tube. The tourniquet, if applied, shall be immediately removed after the venipuncture has been made.

- D.4.9** The amount of blood removed shall be adequate to satisfy the relevant analytical requirements for the *Sample* analysis to be performed, as set out in *WADA's Guidelines for Sample Collection*.
- D.4.10** If the amount of blood that can be removed from the *Rider* at the first attempt is insufficient, the BCO shall repeat the procedure up to a maximum of three (3) attempts in total. Should all three (3) attempts fail to produce a sufficient amount of blood, then the BCO shall inform the DCO. The DCO shall terminate the blood *Sample* collection and record the reasons for terminating.
- D.4.11** The BCO shall apply a dressing to the puncture site(s).
- D.4.12** The BCO shall dispose of used blood sampling equipment not required to complete the Sample Collection Session in accordance with the required local standards for handling blood.
- D.4.13** After the blood flow into the tube ceases, the BCO shall remove the tube from the holder and homogenize the blood in the tube manually by inverting the tube gently at least three (3) times). The *Rider* shall remain in the blood collection area and observe their *Sample* until it is sealed in a Tamper-Evident kit.
- D.4.14** The *Rider* shall seal their *Sample* into a Tamper Evident kit as directed by the DCO. In full view of the *Rider*, the DCO shall check that the sealing is satisfactory. The *Rider* and the BCO/DCO shall sign the *Doping Control* form.
- D.4.15** The sealed *Sample* shall be stored in a manner that protects its integrity, identity and security prior to transport from the Doping Control Station to the Laboratory that will be analyzing the *Sample*.
- D.4.16** Blood *Samples* shall be transported in accordance with Article 9 and *WADA's Guidelines for Sample Collection*. The transport procedure is the responsibility of the DCO. Blood *Samples* shall be transported in a device that maintains the integrity of *Samples* over time, in a cool and constant environment, measured by a temperature data logger notwithstanding changes in external temperature. The transport device shall be transported by secure means using a method authorized by the Testing Authority or Sample Collection Authority.

ANNEX E - URINE SAMPLES - INSUFFICIENT VOLUME

E.1. Objective

To ensure that where a Suitable Volume of Urine for Analysis is not provided, appropriate procedures are followed.

E.2. Scope

The procedure begins with informing the *Rider* that the *Sample* that they have provided is not of Suitable Volume of Urine for Analysis and ends with the *Rider's* provision of a *Sample* of sufficient volume.

E.3. Responsibility

The DCO has the responsibility for declaring the *Sample* volume insufficient and for collecting the additional *Sample(s)* to obtain a combined *Sample* of sufficient volume.

E.4. Requirements

- E.4.1 If the *Sample* collected is of insufficient volume, the DCO shall inform the *Rider* that a further *Sample* shall be collected to meet the Suitable Volume of Urine for Analysis requirements.
- E.4.2 The DCO shall instruct the *Rider* to select partial Sample Collection Equipment in accordance with Annex C.4.3.
- E.4.3 The DCO shall then instruct the *Rider* to open the relevant equipment, pour the insufficient *Sample* into the new container (unless the Sample Collection Authority's procedures permit retention of the insufficient *Sample* in the original collection vessel) and seal it using a partial *Sample* sealing system, as directed by the DCO. The DCO shall check, in full view of the *Rider*, that the container (or original collection vessel, if applicable) has been properly sealed.
- E.4.4 The DCO shall record the partial *Sample* number and the volume of the insufficient *Sample* on the *Doping Control* form and confirm its accuracy with the *Rider*. The DCO shall retain control of the sealed partial *Sample*.
- E.4.5 While waiting to provide an additional *Sample*, the *Rider* shall remain under continuous observation and be given the opportunity to hydrate in accordance with Article 7.3.3.
- E.4.6 When the *Rider* is able to provide an additional *Sample*, the procedures for collection of the *Sample* shall be repeated as prescribed in Annex C - Collection of Urine *Samples*, until a sufficient volume of urine will be provided by combining the initial and additional *Sample(s)*.
- E.4.7 Following each *Sample* provided, the DCO and *Rider* shall check the integrity of the seal(s) on the container(s) containing the previously provided partial *Sample(s)*. Any irregularity with the integrity of the seal(s) will be recorded by the DCO and investigated according to Annex A – Review of a Possible Failure to Comply of the *International*

Standard for Results Management. The DCO may request that an additional *Sample* is collected from the *Rider*. A refusal to provide a further *Sample* if requested, where the minimum requirements for *Sample* collection volume are not met, shall be recorded by the DCO and dealt with as a potential Failure to Comply in accordance with the *International Standard for Results Management*.

- E.4.8** The DCO shall then direct the *Rider* to break the seal(s) and combine the *Samples*, ensuring that additional *Samples* are added in the order they were collected to the original partial *Sample* until, as a minimum, the requirement for Suitable Volume of Urine for Analysis is met.
- E.4.9** The DCO and the *Rider* shall then continue with Annex C.4.12 or Annex C.4.14 as appropriate.

ANNEX F - URINE SAMPLES THAT DO NOT MEET THE REQUIREMENT FOR SUITABLE SPECIFIC GRAVITY FOR ANALYSIS

F.1. Objective

To ensure that when the urine *Sample* does not meet the requirement for Suitable Specific Gravity for Analysis, appropriate procedures are followed.

F.2. Scope

The procedure begins with the DCO informing the *Rider* that a further *Sample* is required and ends with the collection of a *Sample* that meets the requirements for Suitable Specific Gravity for Analysis, or appropriate follow-up action by the Testing Authority if required.

F.3. Responsibility

F.3.1 The Sample Collection Authority is responsible for establishing procedures to ensure that a suitable *Sample* is collected, if the original *Sample* collected does not meet the requirement for Suitable Specific Gravity for Analysis.

F.3.2 The DCO is responsible for collecting additional *Samples* until a suitable *Sample* is obtained.

F.4. Requirements

F.4.1 The DCO shall determine that the requirements for Suitable Specific Gravity for Analysis have not been met.

F.4.2 The DCO shall inform the *Rider* that they are required to provide a further *Sample*.

F.4.3 While waiting to provide a further *Sample*, the *Rider* shall remain under continuous observation and shall be advised not to hydrate, since this may delay the production of a suitable *Sample*. In appropriate circumstances, further hydration after the provision of an unsuitable *Sample* may be pursued as a violation of Code Article 2.5.

[Comment to F.4.3: It is the responsibility of the Rider to provide a Sample with a Suitable Specific Gravity for Analysis. Sample Collection Personnel shall advise the Rider and Rider Support Personnel as appropriate of this requirement at the time of notification in order to discourage excessive hydration prior to the provision of the Rider's first Sample. If the Rider's first Sample does not have a Suitable Specific Gravity for Analysis, they shall be advised to not hydrate any further until a Sample with a Suitable Specific Gravity for Analysis is provided.]

F.4.4 When the *Rider* is able to provide an additional *Sample*, the DCO shall repeat the procedures for *Sample* collection set out in Annex C - Collection of Urine Samples.

F.4.5 The DCO shall continue to collect additional *Samples* until the requirement for Suitable Specific Gravity for Analysis is met, or until the DCO determines that there are exceptional circumstances which mean it is impossible to continue with the Sample Collection Session. Such exceptional circumstances shall be documented accordingly by the DCO.

[Comment to F.4.5: Sample Collection Authorities and DCOs should ensure they have adequate equipment to comply with the requirements of Annex F. The DCO should wait as long as necessary to collect such additional Sample(s) with a Suitable Specific Gravity for Analysis. The Testing Authority may specify procedures to be followed by the DCO in determining whether exceptional circumstances exist that make it impossible to continue with the Sample Collection Session.]

- F.4.6** The DCO shall record that the Samples collected belong to a single Rider and the order in which the Samples were provided.
- F.4.7** The DCO shall then continue with the Sample Collection Session in accordance with Annex C.4.17.
- F.4.8** The DCO shall send to the Laboratory for analysis all Samples which were collected, irrespective of whether or not they meet the requirement for Suitable Specific Gravity for Analysis.
- F.4.9** When two (2) Samples are collected from a Rider, during the same Sample Collection Session, both Samples shall be analyzed by the Laboratory. In cases where three (3) or more Samples are collected during the same Sample Collection Session, the Laboratory shall prioritize and analyze the first and the subsequent collected Sample with the highest specific gravity, as recorded on the Doping Control form. The Laboratory, in conjunction with the Testing Authority, may determine if the other Samples need to be analyzed.

ANNEX G - SAMPLE COLLECTION PERSONNEL REQUIREMENTS

G.1. Objective

To ensure that Sample Collection Personnel have no conflict of interest and have adequate qualifications and experience to conduct Sample Collection Sessions.

G.2. Scope

Sample Collection Personnel requirements start with the development of the necessary competencies for Sample Collection Personnel and end with the provision of identifiable accreditation.

G.3. Responsibility

The Sample Collection Authority has the responsibility for all activities defined in this Annex.

G.4. Requirements - Qualifications and Training

G.4.1 The Sample Collection Authority shall:

- a) Determine the necessary competence, eligibility and qualification requirements for the positions of DCO, Chaperone and BCO; and
- b) Develop duty statements for all Sample Collection Personnel that outline their respective responsibilities. As a minimum:
 - i) Sample Collection Personnel shall not be *Minors*; and
 - ii) BCOs shall have adequate qualifications and practical skills required to perform blood collection from a vein.

G.4.2 The Sample Collection Authority shall ensure that Sample Collection Personnel sign an agreement dealing with conflicts of interest, confidentiality and code of conduct.

G.4.3 Sample Collection Personnel shall not be appointed to a Sample Collection Session where they have an interest in the outcome of a Sample Collection Session. At a minimum, Sample Collection Personnel are deemed to have such an interest if they are:

- a) Involved in the participation or administration of the sport at the level for which *Testing* is being conducted;
- b) Related to, or involved in the personal affairs of, any *Rider* who might provide a *Sample* at that Sample Collection Session;
- c) Have family members actively involved in the daily activities of the sport at the level for which *Testing* is being conducted (e.g., administration, coaching, training, officiating, competitor, medical);

- d) Are engaged in business with, have a financial interest in or personal stake in a sport that has *Riders* who are subject to *Testing*;
- e) Are drawing or likely to draw personal and/or professional gain or advantage directly or indirectly from a third party due to their own decisions taken in the fulfillment of their official functions; and/or
- f) Appear to have private or personal interests that detract from their ability to perform their duties with integrity in an independent and purposeful manner.

G.4.4 The Sample Collection Authority shall establish a system that ensures that Sample Collection Personnel are adequately trained to carry out their duties.

G.4.4.1 The training program for BCOs shall include, as a minimum, studies of all relevant requirements of the *Testing* process and familiarization with relevant standard precautions in healthcare settings.

G.4.4.2 The training program for DCOs shall include, as a minimum:

- a) Comprehensive theoretical training in those *Doping Control* activities relevant to the DCO position;
- b) Observation of all Sample Collection Session activities that are the responsibility of the DCO as set out in this *International Standard for Testing* and Investigations, preferably on-site; and
- c) The satisfactory performance of one complete Sample Collection Session on-site under observation by a qualified DCO or similar. The requirement related to the actual passing of a urine *Sample* shall not be included in the on-site observations.

G.4.4.3 The training program for Chaperones shall include all relevant requirements of the Sample Collection Session including but not limited to situations dealing with Failure to Comply, *Riders* who are *Minors* and/or *Riders* with impairments.

G.4.4.4 A Sample Collection Authority that collects *Samples* from *Riders* who are of a different nationality to its Sample Collection Personnel (e.g., at an *International Event* or in an *Out-of-Competition* context) should ensure that such Sample Collection Personnel are adequately trained to carry out their duties in respect of such *Riders*.

G.4.4.5 The Sample Collection Authority shall maintain records of education, training, skills and experience of all Sample Collection Personnel.

G.5. Requirements - Accreditation, Re-Accreditation and Delegation

- G.5.1** The Sample Collection Authority shall establish a system for accrediting and re-accrediting Sample Collection Personnel.
- G.5.2** The Sample Collection Authority shall ensure that Sample Collection Personnel have completed the training program and are familiar with the requirements of this *International Standard for Testing and Investigations* (including, where G.4.4.4 applies, in relation to the collection of *Samples* from *Riders* who are of a different nationality than the Sample Collection Personnel) before granting accreditation.
- G.5.3** Accreditation shall only be valid for a maximum of two (2) years. Sample Collection Personnel shall be subject to an assessment (theoretical and/or practical) before being re-accredited and shall be required to repeat a full training program if they have not participated in *Sample* collection activities within the year prior to re-accreditation.
- G.5.4** Only Sample Collection Personnel who have an accreditation recognized by the Sample Collection Authority shall be authorized to conduct *Sample* collection activities on behalf of the Sample Collection Authority.
- G.5.5** The Sample Collection Authority shall develop a system to monitor the performance of Sample Collection Personnel during the period of accreditation, including defining and implementing criteria for revoking accreditation.
- G.5.6** DCOs may personally perform any activities involved in the Sample Collection Session, with the exception of blood collection unless particularly qualified, or they may direct a Chaperone to perform specified activities that fall within the scope of the Chaperone's authorized duties as determined by the Sample Collection Authority

[Comment to G.5.6: Due to the absence of venipuncture during dried blood spot collection, in many jurisdictions, dried blood spot Samples may be collected by a DCO without the need for a specialized BCO if standard precautions in healthcare settings are followed and the DCO is suitably trained in accordance with Annex J.3.]

ANNEX H – EVENT TESTING

H.1. Objective

To ensure there is a procedure to follow when a request is made by an *Anti-Doping Organization* for permission to conduct *Testing* at an *Event* where they have been unable to reach agreement on such *Testing* with the ruling body of the *Event*. WADA's objective in considering such requests is to:

- a) Encourage collaboration and coordination between different *Anti-Doping Organizations* to optimize the effectiveness of their respective *Testing* programs;
- b) Ensure that each *Anti-Doping Organization's* responsibilities are properly managed; and
- c) Avoid creating operational disturbance and harassment for *Riders*.

H.2. Scope

The procedure starts with the *Anti-Doping Organization* that is not responsible for initiating or directing *Testing* at an *Event* contacting the ruling body of the *Event* in writing to seek permission to conduct *Testing* and ends with WADA issuing a decision as to who shall be responsible to conduct *Testing* at the *Event*.

H.3. Responsibility

Both *Anti-Doping Organizations* seeking permission to conduct *Testing* at an *Event* and the ruling body of the *Event* should collaborate and where possible coordinate *Testing* at the *Event*. However, if this is not possible, then both *Anti-Doping Organizations* are required to submit their reasonings to WADA within the timeframes outlined. WADA then has the responsibility of reviewing the circumstances and issuing a decision in accordance with the procedures set out in this Annex.

H.4. Requirements

Any *Anti-Doping Organization* that is not responsible for initiating and directing *Testing* at an *Event* in accordance with Code Article 5.3.2, but which nevertheless desires to conduct *Testing* at such *Event* shall, prior to contacting WADA, request such permission from the ruling body of the *Event* in written form with full supporting reasons.

H.4.1 Such request shall be sent to the ruling body at least thirty-five (35) days prior to the beginning of the *Event* (i.e., thirty-five (35) days prior to the beginning of the *In-Competition* period as defined by the rules of the International Federation in charge of that sport).

H.4.2 If the ruling body refuses or does not respond within seven (7) days from receipt of the request, the requesting *Anti-Doping Organization* may send to WADA (with a copy to the ruling body) a written request with full supporting reasons, a clear description of the situation, and all the relevant correspondence between the ruling body and the requesting *Anti-Doping Organization*. Such request must be received by WADA no later than twenty-one (21) days prior to the beginning of the *Event*.

- H.4.3** Upon receipt of such request, WADA will immediately ask the ruling body for its position on the request and the grounds for its refusal. The ruling body shall send WADA an answer within seven (7) days of receipt of WADA's request.
- H.4.4** Upon receipt by WADA of the ruling body's answer, or if no answer is provided by the ruling body within the seven (7) days, WADA will render a reasoned decision within the next seven (7) days. In making its decision, WADA will consider, amongst others, the following:
- a) The Test Distribution Plan for the *Event*, including the number and type of *Testing* planned for the *Event*;
 - b) The menu of *Prohibited Substances* for which the *Samples* collected will be analyzed;
 - c) The overall anti-doping program applied in the sport;
 - d) The logistical issues that would be created by allowing the requesting *Anti-Doping Organization* to conduct *Testing* at the *Event*;
 - e) Any other grounds submitted by the requesting *Anti-Doping Organization* and/or the ruling body refusing such *Testing*; and
 - f) Any other available information that WADA considers relevant.
- H.4.5** If an *Anti-Doping Organization* who is not the ruling body for an *Event* in the country in which the *Event* is being hosted, has or receives intelligence regarding potential doping by an *Rider(s)* who is due to compete at the *Event*, the *Anti-Doping Organization* shall share the intelligence with the ruling body of the *Event* as soon as possible. If no *Testing* is planned by the ruling body for the *Event* and the *Anti-Doping Organization* is in a position to conduct *Testing* itself, the ruling body for the *Event* shall assess whether it or the *Anti-Doping Organization* can conduct *Testing* regardless of whether the intelligence is provided by the *Anti-Doping Organization* within the thirty-five (35) day period preceding the *Event*. If the ruling body of the *Event* fails to engage with the *Anti-Doping Organization* that provided the intelligence or decides it is not able to conduct *Testing* itself or does not authorize the *Anti-Doping Organization* to conduct *Testing* at the *Event*, then the *Anti-Doping Organization* shall notify WADA immediately.
- H.4.6** If WADA decides that permission for *Testing* at the *Event* should be granted, either as requested by the requesting *Anti-Doping Organization* or as proposed by WADA, WADA may give the ruling body the possibility of conducting such *Testing*, unless WADA judges that this is not realistic and/or appropriate in the circumstances.

ANNEX I - COLLECTION, STORAGE AND TRANSPORT OF BLOOD ATHLETE BIOLOGICAL PASSPORT SAMPLES

I.1. Objective

To collect a *Rider's* blood *Sample* by venipuncture, intended for use in connection with the measurement of individual *Rider* blood variables within the framework of the hematological module of the *Athlete Biological Passport* program, in a manner appropriate for such use. The requirements of this Annex are additional requirements to those contained in Annex D – Collection of Venous Blood *Samples*.

I.2. Requirements

I.2.1 Planning shall consider the *Rider's* whereabouts information to ensure *Sample* collection does not occur within two (2) hours of the *Rider's* training, participation in *Competition* or other similar physical activity. If the *Rider* has trained or competed less than two (2) hours before the time the *Rider* has been notified of their selection, the DCO or other designated Sample Collection Personnel shall chaperone the *Rider* until this two-hour period has elapsed.

I.2.2 If the *Sample* was collected within two (2) hours of training or *Competition*, the nature, duration and intensity of the exertion shall be recorded by the DCO to make this information available to the APMU.

I.2.3 Although a single blood *Sample* is sufficient within the framework of the hematological module of the *Athlete Biological Passport*, it is recommended to collect an additional (B) *Sample* for a possible subsequent analysis of *Prohibited Substances* and *Prohibited Methods* in whole blood (e.g., detection of homologous blood transfusion (HBT) and/or erythropoietin receptor agonists (ERAs)).

I.2.4 For *Out-of-Competition Testing*, A and B urine *Samples* should be collected together with the blood *Athlete Biological Passport Sample(s)* in order to permit Analytical Testing for ERAs unless otherwise justified by a specific intelligent *Testing* strategy.

[Comment to I.2.4: WADA's Guidelines for Sample Collection reflect these protocols and include practical information on the integration of Athlete Biological Passport Testing into "traditional" Testing activities. A table has been included within WADA's Guidelines for Sample Collection that identifies which particular timelines for delivery are appropriate when combining particular types of analysis (e.g., blood Athlete Biological Passport and growth hormone (GH), blood Athlete Biological Passport and HBT, etc.), and which types of Samples may be suited for simultaneous transport.]

I.2.5 The *Sample* shall be refrigerated from its collection until its analysis with the exception of when the *Sample* is analyzed immediately following collection. The storage procedure is the DCO's responsibility.

I.2.6 The storage and transport device shall be capable of maintaining blood *Athlete Biological Passport Samples* at a cool temperature during storage. Whole blood *Samples* shall not be allowed to freeze at any time. In choosing the storage and transport device, the DCO shall take into account the time of storage, the number of *Samples* to be stored in the device and the prevailing environmental conditions (hot or cold temperatures). The storage

device shall be one of the following:

- a) Refrigerator;
- b) Insulated cool box;
- c) Isotherm bag; or
- d) Any other device that possesses the capabilities mentioned above.

I.2.7 A temperature data logger shall be used to record the temperature from the collection to the analysis of the *Sample* except when the *Sample* is analyzed immediately following collection. The temperature data logger shall be able to:

- a) Record the temperature in degrees Celsius at least once per minute;
- b) Record time in GMT;
- c) Report the temperature profile over time in text format with one line per measurement following the format “YYYY-MM-DD HH:MM T”; and
- d) Have a unique ID of at least six (6) characters.

I.2.8 Following notification to the *Rider* that they have been selected for *Sample* collection and following the DCO/BCO's explanation of the *Rider's* rights and responsibilities in the *Sample* collection process, the DCO/BCO shall ask the *Rider* to remain still, in an upright, stationary seated position, with feet on the floor for at least ten (10) minutes prior to providing a blood *Sample*. If the *Rider's* feet cannot reach the floor and/or the *Rider's* impairment does not allow feet on the floor, the *Rider* shall remain in an upright, stationary seated position.

[Comment to I.2.8: The Rider shall not stand up at any time during the ten (10) minutes prior to Sample collection. To have the Rider seated during ten (10) minutes in a waiting room and then to call the Rider into a blood collection room is not acceptable.]

I.2.9 The DCO/BCO shall collect and record the following additional information on an *Athlete Biological Passport* supplementary form, *Athlete Biological Passport* specific *Doping Control* form or other related report form to be signed by the *Rider* and the DCO/BCO:

- a) Has the *Rider* been seated for at least ten (10) minutes with their feet on the floor prior to blood collection, as per Annex I.2.8?
- b) Was the *Sample* collected immediately following at least three (3) consecutive days of an intensive endurance *Competition*, such as a stage race in cycling?
- c) Has the *Rider* had a training session or *Competition* in the two (2) hours prior to the blood collection?
- d) Did the *Rider* train, compete or reside at an altitude greater than 1,500 meters within the prior two (2) weeks? If so, or if in doubt, the name and location of the place where

the *Rider* had been, and the dates and the duration of their stay shall be recorded. The estimated altitude shall be entered, if known.

- e) Did the *Rider* use any form of altitude simulation such as a hypoxic tent, mask, etc. during the prior two (2) weeks? If so, as much information as possible on the type of device and the manner in which it was used (e.g., frequency, duration, intensity) should be recorded.
- f) Did the *Rider* receive any blood transfusion(s) during the prior three (3) months? Was there any blood loss due to accident, pathology or donation in the prior three (3) months? If so, the estimated volume should be recorded.
- g) Has the *Rider* been exposed to any extreme environmental conditions during the last two (2) hours prior to blood collection, including any sessions in any artificial heat environment, such as a sauna? If so, the details should be recorded.

I.2.10 The DCO/BCO shall start the temperature data logger and place it in the storage device. It is important to start recording the temperature before *Sample* collection.

I.2.11 The storage device shall be located in the Doping Control Station and shall be kept secure.

I.2.12 The DCO/BCO instructs the *Rider* to select the Sample Collection Equipment in accordance with Annex D.4.6 and continue the Sample Collection Session in accordance with Annex D.4.7.

I.3. The *Sample* Collection Procedure

I.3.1 The *Sample* collection procedure for the collection of blood for the purposes of the *Athlete Biological Passport* is consistent with the procedure set out in Annex D.4., including the ten (10) minute (or more) seated period.

I.3.2 The *Rider* and the DCO/BCO sign the *Doping Control* and *Athlete Biological Passport* supplementary form(s), when applicable.

I.3.3 The blood *Sample* is sealed and deposited in the storage device containing the temperature data logger.

I.4. Transportation Requirements

I.4.1 Blood *Samples* shall be transported in a device that maintains the integrity of *Samples* over time, due to changes in external temperature.

I.4.2 The transport procedure is the DCO's responsibility. The transport device shall be transported by secure means using a Sample Collection Authority authorized transport method.

I.4.3 The integrity of the *Markers* used in the hematological module of the *Athlete Biological Passport* is guaranteed when the Blood Stability Score (BSS) remains below eighty-five (85), where the BSS is computed as:

$$\text{BSS} = 3 * T + \text{CAT}$$

with CAT being the Collection to Analysis Time (in hours), and T the average Temperature (in degrees Celsius) measured by the data logger between *Sample* collection and analysis.

- I.4.4** Within the framework of the BSS, the following table can be used by the DCO/BCO to estimate the maximal transport time to a Laboratory or ABP Laboratory, called the Collection to Reception Time (CRT), for a given average temperature (T), e.g., if shipped at 4°C, the maximal CRT is 60h.:

T [°C]	CRT [h]
15	27
12	36
10	42
9	45
8	48
7	51
6	54
5	57
4	60

- I.4.5** The DCO/BCO shall as soon as possible transport the *Sample* to a Laboratory or ABP Laboratory.
- I.4.6** The Testing Authority or Sample Collection Authority shall report without delay into ADAMS:
- The *Doping Control* form, as per Article 4.9.1 b);
 - The *Athlete Biological Passport* supplementary form, and/or the additional information specific to the *Athlete Biological Passport* collected on a related report form;
 - In the Chain of Custody, the temperature data logger ID (without any time reference) and the time zone of the *Testing* location in GMT.

ANNEX J - COLLECTION, STORAGE AND TRANSPORT OF DRIED BLOOD SPOT SAMPLES

J.1 Objective

To collect a *Rider's* blood as dried blood spot *Sample* in a manner that ensures:

- a) Consistency with relevant principles of internationally recognized standard precautions in healthcare settings, and is collected by a suitably trained *Person*, so that the health and safety of the *Rider* and Sample Collection Personnel are not compromised;
- b) The *Sample* is of a quality and quantity that meets the relevant analytical requirements;
- c) The *Sample* has not been manipulated, substituted, contaminated or otherwise tampered with in any way;
- d) The *Sample* is clearly and accurately identified; and
- e) The *Sample* is securely sealed in a Tamper Evident kit.

J.2 Scope

The collection of a dried blood spot *Sample* begins with ensuring the *Rider* is informed of the *Sample* collection requirements and ends with properly storing the *Sample* prior to transport to the Laboratory that will be analysing the *Sample*. Dried blood spot *Samples* are collected by puncture/incision of the skin to access capillary vessels (small blood vessels). One dried blood spot *Sample* consists of a series of small volumes of capillary blood, which are collected within the same Sample Collection Session and allowed to dry on an absorbent *Sample* support.

[Comment to J.2: In this context, the term “dried blood spot” refers to a capillary blood Sample that is collected and allowed to dry on an absorbent Sample support, including Samples collected by “spotting” capillary blood directly onto a cellulose-based card or other absorbent Sample support made of cellulose or of another material, as well as those collected via a specific device with integrated microneedle(s)/microlancet(s).]

J.3 Responsibility

Due to the absence of venipuncture during dried blood spot collection, dried blood spot *Samples* may be collected by a DCO without the need for a specialized BCO if standard precautions in healthcare settings are followed and the DCO is suitably trained. Procedures for dried blood spot collection shall be consistent with local standards and regulatory requirements. The DCO and/or the BCO have the responsibility for:

- a) Collecting the dried blood spot *Sample*;
- b) Ensuring that each *Sample* is properly identified and sealed;
- c) Answering relevant questions during the provision of the *Sample*;
- d) Properly disposing of dried blood spot sampling equipment that is opened but not

used, or used pieces of equipment not sealed with the absorbent *Sample* support; and

- e) Properly storing and dispatching each *Sample*.

J.4 Requirements for Dried Blood Spot Sample Collection Equipment

The dried blood spot *Sample Collection Equipment* shall fulfill the following criteria:

- a) Contain a single-use *Sample* collection device (e.g., disposable lancets to be used in conjunction with cellulose cards, devices with integrated microneedle(s) /microlancet(s)) for the puncture/incision and collection of capillary blood at the fingertip and/or from the upper arm (alternative sites of punctures may be authorized for *Riders* with physical impairments, if required);
- b) The “A” and “B” absorbent *Sample* support shall allow the collection of distinct “A” and “B” spots (or equivalent) with a minimum total of approximately 40 µL of capillary blood in the “A” spot(s) and with a minimum total of approximately 20 µL of capillary blood in the “B” spot(s) and;

[Comment to J.4 (b): Depending on the dried blood spot Sample Collection Equipment used, the volume and number of spots may vary. If a spot has a small volume (e.g., less than 20 µL), several spots may be combined to perform the required Analytical Testing Procedure(s).]

- c) The *Sample* container and/or storage sleeves/packages/receptacles shall contain a desiccant to allow the spots to dry expeditiously when already sealed (without having to wait before sealing) and offering protection against possible premature degradation or contamination of the *Sample*.

[Comment to J.4: Additional guidance for dried blood spot Sample Collection Equipment can be found in WADA’s Guidelines for Sample Collection.]

J.5 Dried Blood Spot Sample Provision

Procedures involving blood collection shall be consistent with the local standards and regulatory requirements regarding precautions in healthcare settings where those standards and requirements exceed the requirements set out below.

J.5.1 The DCO shall ensure that the *Rider* is properly notified of the requirements of the *Sample* collection, including any modifications as provided for in Annex A - Modifications for *Riders* with Impairments and/or in Annex B - Modifications for *Riders* who are *Minors*.

J.5.2 The DCO/Chaperone and *Rider* shall proceed to the area where the *Sample* will be provided.

J.5.3 The DCO/BCO shall wear gloves during the *Sample* collection process and until the *Sample* is sealed.

J.5.4 The DCO/Chaperone shall, where practicable, ensure the *Rider* thoroughly washes their hands with water only prior to the provision of the *Sample*.

[Comment to J.5.4: Any traces of talcum powder, resin, or other products that Riders use should be thoroughly cleaned, and alcohol pads or swabs may be used if needed.]

- J.5.5** The DCO/BCO shall ensure that the *Rider* is offered comfortable conditions for the provision of the *Sample*.

[Comment to J.5.5: The requirement for the Rider to be seated in an upright stationary position for at least 10 minutes with feet on the floor as contained in Annex D.4.5 prior to providing a blood Sample does not apply before the provision of a dried blood spot Sample.]

- J.5.6** The DCO/BCO shall instruct the *Rider* to select the Sample Collection Equipment required for collecting the *Sample* and to check that the selected equipment has not been tampered with and any seals are intact. If the *Rider* is not satisfied with the selected equipment, they may select another. If the *Rider* is not satisfied with any equipment and no other is available, this shall be recorded by the DCO. If the DCO does not agree with the *Rider* that all of the available equipment is unsatisfactory, the DCO shall instruct the *Rider* to proceed with the Sample Collection Session. If the DCO agrees with the *Rider* that all available equipment is unsatisfactory, the DCO shall terminate the collection of dried blood spot *Samples* and this shall be recorded by the DCO.

- J.5.7** When a *Sample* collection kit has been selected, the DCO and the *Rider* shall check that all *Sample* code numbers match and that this *Sample* code number is recorded accurately by the DCO on the *Doping Control* form. If the *Rider* or DCO finds that the numbers are not the same, the DCO shall instruct the *Rider* to choose another kit. The DCO shall record the matter.

- J.5.8** The DCO/BCO shall assess the most suitable location for puncture at the fingertip and/or from the upper arm that is unlikely to adversely affect the *Rider* or their sporting performance (e.g., non-dominant hand/arm). This should be a site of puncture that is free of any calluses, cuts, scars and tattoos. The DCO/BCO should select an alternative suitable site of puncture for *Riders* with physical impairments if applicable.

[Comment to J.5.8: The DCO/BCO should decide whether the dried blood spot Sample be collected from the right or left hand/arm. However, they may not be given the choice of the collection between the hand or arm, as this is dependent on the Sample Collection Equipment used by the SCA.]

- J.5.9** The DCO/BCO shall instruct the *Rider* to warm the *Sample* collection site by, for example, washing the hands in warm water, shaking the hand/arm, massaging the puncture site, or placing the hand/arm in a warm blanket or equivalent.

- J.5.10** The DCO/BCO shall clean the skin with a sterile alcohol pad or swab. Disinfectant gels shall not be used. Once the skin is completely dried, the DCO/BCO shall take the capillary blood *Sample* from the fingertip or an area on the upper arm using the dried blood spot collection device in accordance with the instructions provided by the equipment manufacturers.

For dried blood spot *Samples* collected from the fingertip:

- a) The middle or ring finger should be selected if possible. The little finger may also be selected but the collection may be more painful;

- b) The puncture should be done with a lancet, slightly lateral to the pad of the finger, on the last phalanx of the finger;
- c) Blood flow can be increased by gently massaging the proximal portion of the finger in a distal direction. However, squeezing or milking the finger should be avoided as it may cause hemolysis and dilution of the *Sample*;
- d) The first drop of blood shall be wiped away with a dry sterile compress/gauze pad;
- e) Only the drop of blood shall enter into contact with the dried blood spot absorbent *Sample* support, while the finger shall not touch it. The drop of blood should not be smeared onto the absorbent *Sample* support; and
- f) Only one drop of blood shall be applied per spot, because the dripping of several drops onto the same spot would cause an inhomogeneous *Sample*.

For dried blood spot *Samples* collected from the upper arm with a device with integrated microneedle(s)/microlancet(s):

- g) The DCO/BCO shall be responsible for applying and removing the device from the *Rider's* arm. The *Rider* is permitted to press the button to engage the microneedle(s)/microlancet(s) after having received the necessary instructions from the DCO/BCO. Otherwise, the DCO/BCO will press the button.

J.5.11 The volume of capillary blood removed shall be adequate to satisfy the relevant analytical requirements for the *Sample* analysis to be performed, i.e., a minimum total of approximately 40 µL of capillary blood in the “A” spot(s) and a minimum total of approximately 20 µL of capillary blood in the “B” spot(s) for chromatography-mass spectrometric Analytical Methods. Other special analyses may require additional *Samples* and/or increased *Sample* volume.

J.5.12 The DCO/BCO shall verify that capillary blood is deposited on the absorbent *Sample* support and that a sufficient number of spots in the “A” and “B” *Samples* (to produce a sufficient amount of capillary blood, as described in Annex J.5.11) are saturated with blood.

J.5.13 If the volume of capillary blood collected from the *Rider* at the first attempt is insufficient, the DCO/BCO shall repeat the procedure up to a maximum of three (3) attempts in total. Should all three (3) attempts fail to produce a sufficient volume of capillary blood, the DCO shall terminate the collection of dried blood spot *Samples* and record the reasons for its termination. If more than one attempt is needed, another site of puncture shall be selected by the DCO/BCO. The skin shall be cleaned and a new lancet/*Sample* Collection device shall be used for the puncture of the skin.

[Comment to J.5.13: An attempt is defined as the act of puncturing the skin, i.e., only if the lancet or microneedle(s)/microlancet(s) has(ve) been engaged and punctured the skin.]

J.5.14 After collection, the DCO/BCO shall apply pressure to the puncture site(s) or ask the *Rider* to do so. The DCO/BCO shall then apply a dressing(s).

J.5.15 The DCO/BCO shall dispose of used pieces of equipment that are not sealed with the absorbent *Sample* support in accordance with the required local standards for handling blood.

J.5.16 If the *Sample* requires further on-site processing, such as removal of the absorbent *Sample* support (e.g., cellulose paper, cartridge) from the collection device, the DCO/BCO shall do so and then transfer the *Sample* into the Tamper Evident kit. The *Rider* shall remain in the collection area and observe their *Sample* until it is sealed in a Tamper Evident kit.

J.5.17 The *Rider* shall seal their *Sample* in the Tamper Evident kit as directed by the DCO. In full view of the *Rider*, the DCO shall check that the sealing is satisfactory. The *Rider* and the DCO/BCO shall sign the *Sample* collection documentation; and

J.5.18 The sealed dried blood spot *Sample* can be stored at room temperature and shall be stored in a manner which minimizes the potential for *Sample* degradation due to factors such as time delays, exposure to light and extreme temperature variations

J.6 Requirements for Transport

J.6.1 Dried blood spot *Samples* shall be transported in accordance with Articles 9.1 to 9.3, with the following specifications:

- a) Dried blood spot *Samples* can be shipped as non-hazardous materials using regular mail or courier services, subject to any applicable regulations;
- b) While the *Sample* containers shall be transparent, it is recommended to transport dried blood spot *Samples* in a non-transparent transport box/bag to protect the *Samples* from light exposure; and
- c) Dried blood spot *Samples* can be transported at ambient temperature. If collecting other blood *Samples* (e.g., blood *Athlete Biological Passport Samples*) during the same Sample Collection Session, dried blood spot *Samples* can also be shipped refrigerated.

ANNEX K – COLLECTION OF URINE SAMPLES IN A VIRTUAL ENVIRONMENT DURING A PANDEMIC¹

K.1 Objective

To provide a modified *Sample* collection procedure in a virtual environment that may only be implemented during a pandemic and/or a national epidemic when local or national government health restrictions in place allow an in-person notification of a *Rider* but restrict in-person collection of a urine sample by a DCO.

[Comment to K.1: The ability to collect Samples during a pandemic may vary among countries based on the national approach to the pandemic and/or national epidemic, including the international, national and regional laws in place. As a result, Sample collection in a virtual environment is not mandatory. Before considering the implementation of Sample collection in a virtual environment an ADO should liaise with the applicable national health and data privacy authorities. If an ADO can conduct Sample collection in a virtual environment in the circumstances permitted by this Annex K, then the modified Sample collection procedures set out in this Annex, in particular complying with the additional standards referenced in Annex K.3.1 and K.3.2, are mandatory. Additional guidance on how to implement several of the requirements outlined in this Annex are provided in the Guidelines for Testing During a Pandemic.]

K.2 Scope

The procedure begins with the DCO notifying a *Rider* at the testing location and handing the *Rider* a package of Sample Collection Equipment and ends with the DCO collecting the sealed *Sample* and the corresponding *Sample* collection documentation from the *Rider* at the location where notification to the *Rider* of their selection for Testing and requirement to provide a *Sample* occurred, or at another location that the DCO and *Rider* will agree to.

K.3 Responsibility

K.3.1 In times of a pandemic and/or a national epidemic, *UCI* shall follow the advice of national governments and health authorities to ensure the health and safety of *Riders* and Sample Collection Personnel is protected. Specific requirements must be taken into consideration from any relevant international, national and regional laws when considering the implementation of *Sample* collection procedures (e.g., mandatory or recommended occupational health and safety practices such as social distancing, hand washing, mask wearing, vaccination etc.)

K.3.2 Prior to implementation, *UCI* shall assess modified *Sample* collection procedures in a virtual environment, including any selected IT system and any Third-Party Agent involved in such procedures or IT system, against the requirements of the *International Standard for the Protection of Privacy and Personal Information* and applicable laws, such as privacy/data protection and if necessary, shall implement appropriate physical, organizational, technical, and other measures to mitigate privacy and information security risks identified in such assessment.

K.3.3 The DCO has the responsibility for providing the *Rider* with instructions from the point of the in-person notification and then virtually via the IT system used, and that each *Sample*

¹ As declared by the World Health Organization. In addition, the *UCI* shall consider implementing the *Sample* collection in a virtual environment when the national government declares a national epidemic in a certain country or region.

is properly collected, identified, documented, sealed, and the integrity of the *Sample* is maintained throughout the virtual collection and sealing process.

K.4 Requirements

- K.4.1** When initial contact is made, the DCO shall inform the *Rider*, at the testing location, that they are required to undergo a *Sample* collection. The notification of the *Rider* shall be in accordance with Article 5.4.1.
- K.4.2** The DCO shall ensure that the *Rider* is informed that the *Sample* collection and sealing procedure will be conducted in a virtual environment during their Sample Collection Session, including any modifications as provided for in Annex A - Modifications for *Riders* with Impairments and/or in Annex B - Modifications for *Riders* who are *Minors*.
- K.4.3** The DCO shall complete the 'Rider Notification' part of the *Sample* collection documentation (either in paper or electronic) and the *Rider* shall sign it to acknowledge and accept the notification. If the *Rider* refuses to sign that they have been notified, or evades the notification, the DCO shall, if possible, inform the *Rider* of the *Consequences* of a Failure to Comply. The DCO shall document the facts in a detailed report and report the circumstances to the Testing Authority. The Testing Authority shall follow the steps prescribed in Annex A - Review of a Possible Failure to Comply of the *UCI Regulations for Results Management*.
- K.4.4** The DCO shall start a two-way video and audio connection via the selected IT system (e.g., tablet, mobile phone, or body camera) with supporting mounting device (if applicable) and provide it to the *Rider*. The DCO shall advise the *Rider* that they must remain on camera with the DCO via the IT system for the duration of the Sample Collection Session. The DCO shall also inform the *Rider* that recording functions have been completely disabled.
- K.4.5** The DCO shall then provide the *Rider* with the package that includes Sample Collection Equipment, other supporting devices such as temperature monitoring strips, and applicable documentation. The DCO shall inform the *Rider* to proceed with the Sample Collection Equipment to a suitable *Sample* collection location that is private and where the Sample Collection Session can continue. The DCO shall also ensure they are in a private location.
- K.4.6** When the *Rider* is positioned in the *Sample* Collection location where the Sample Collection Session will be conducted, the DCO, connected virtually via the IT system, shall instruct the *Rider* to:
- a) Confirm if a *Rider* representative is present with the *Rider* in the *Sample* Collection location;
 - b) Show the DCO on camera via the IT system the *Sample* Collection location selected where the Sample Collection Session will be conducted; and
 - c) Confirm satisfactory audio and visual quality of the IT system used.
- K.4.7** The DCO shall confirm to the *Rider* that the DCO will also be on camera for the duration of the Sample Collection Session and that the Sample Collection Session is not being recorded.

- K.4.8** The DCO shall then ask the *Rider* to place the IT system in a location where the DCO will have a view of the *Rider* (including upper body and hands) and have full view of the Sample Collection Equipment.
- K.4.9** The *Rider* shall place the content of the package with the Sample Collection Equipment, supporting devices and documentation on a steady surface in the *Sample* collection location in full view of the DCO.
- K.4.10** The *Rider* shall complete the 'Rider Information' part of the *Sample* collection documentation (either in paper or electronic) with the assistance of the DCO.
- K.4.11** The DCO shall instruct the *Rider* to select a collection vessel in accordance with Annex C.4.3. The DCO shall then ask the *Rider* to apply a temperature monitoring strip to the outside of the collection vessel.
- K.4.12** When the *Rider* is ready to provide a urine *Sample*, the DCO shall ask the *Rider* to move to the toilet area and show the DCO on camera the toilet area in which they will be providing their *Sample*. The DCO should direct the *Rider* as to the best location for the IT system to be positioned during the *Sample* provision. Anything suspicious e.g., other urine *Samples* or doping paraphernalia in the toilet area with potential to compromise the *Sample* collection shall be documented in detail by the DCO.
- K.4.13** The DCO shall also inform the *Rider* that *Sample* provision will not be directly witnessed as it normally would be, i.e., the DCO observing the urine *Sample* directly leaving their body, however, the *Rider* will be continuously observed via the IT system in the toilet area. The camera shall be set in a position in the toilet area that provides the DCO with a full view of the *Rider's* upper body (i.e., waist to top of head) and arms while they are waiting to provide a *Sample* and/or during the *Sample* provision.
- K.4.14** The *Rider* shall be reminded of the importance to stay on camera during the sample provision and be advised of the possible *Consequences* of a Failure to Comply. Any loss of connection should be documented including exact time and duration, as well as any further re-connection attempts and explanations from the *Rider*. If the *Rider* does not remain visible in the camera field of view or the *Sample* once provided by the *Rider* does not remain visible in the camera field of view and if the circumstances are deemed suspicious by the DCO, the DCO shall consider collecting an additional *Sample* from the *Rider*. The DCO shall document the facts in a detailed report and report the circumstances to the Testing Authority.
- [Comment to K.4.12 and K.4.14: If appropriate, the Testing Authority shall follow the steps prescribed in Annex A - Review of a Possible Failure to Comply in the UCI Regulations for Results Management.]*
- K.4.15** Once the *Rider* provides the required volume of urine, the DCO shall ask the *Rider* to show them the collection vessel with the volume measurement scale on camera to validate that the Suitable Volume of Urine for Analysis has been provided. Where the volume of urine provided by the *Rider* is insufficient, the DCO shall provide instructions to the *Rider* to follow the partial *Sample* collection procedure in accordance with Annex E - Urine *Sample* – Insufficient Volume.

- K.4.16** Once the lid of the collection vessel has been secured, the DCO shall then ask the *Rider* whilst in the toilet area to show the temperature monitoring strip measurement on camera to allow the DCO to confirm the temperature of the urine *Sample*.
- K.4.17** The *Rider* shall exit the toilet area and return to the *Sample* collection location, ensuring they keep their *Sample* visible on camera. On return to the *Sample* collection location, the *Rider* shall position the camera in the same location as it was at the start of the procedure so that their *Sample* are in full view of the DCO until the *Sample* is sealed.
- K.4.18** The DCO shall guide the *Rider* through the process of selecting and opening a *Sample* collection kit containing A and B bottles in accordance with Annex C.4.3 and Annex C.4.12. The *Rider* shall show the DCO the *Sample* code numbers and the DCO should document them (and later confirm upon receipt of the *Sample*).
- K.4.19** The division of the *Sample* into the A and B bottles and the sealing of the A and B bottles shall be conducted by the *Rider* in full view of the DCO in accordance with Annex C.4.13 and C.4.14.
- K.4.20** Once the *Rider* has finished the sealing of the A and B bottles, the *Rider* shall test the residual urine in the collection vessel to determine if the *Sample* has a Suitable Specific Gravity for Analysis with the assistance of the DCO. When the urine *Sample* does not meet the requirement for Suitable Specific Gravity for Analysis, the DCO shall provide instructions to the *Rider* to follow the appropriate procedures in accordance with Annex F - Urine *Samples* that do not meet the requirement for Suitable Specific Gravity for Analysis.
- K.4.21** The *Rider* shall complete the *Sample* collection documentation with the assistance of the DCO. The *Rider* and the DCO shall sign appropriate documentation to indicate their satisfaction that the documentation accurately reflects the details of the Sample Collection Session. The DCO shall ensure that the *Rider* is advised to keep a copy of the *Sample* collection documentation (if in paper) or that the *Rider* receives a copy of the *Sample* collection documentation (if electronic).
- K.4.22** Upon completion, the DCO shall ask the *Rider* to pack their *Sample*, all Sample Collection Equipment and documentation and meet the DCO in the initial location where the *Rider* was notified or an agreed upon location.
- K.4.23** The *Rider* shall remain on camera until they have concluded the Sample Collection Session, and they meet the DCO in-person.
- K.4.24** The DCO, upon receiving the requested equipment and documentation from the *Rider*, shall conduct a review of all Sample Collection Equipment, supporting devices and documentation, and confirm, in writing, that *Sample* collection documentation and corresponding *Sample(s)* are enclosed.